UNITED STATES COURT OF APPEALS
FOR THE FIRST CIRCUIT

No. 26-1250

MANISH KUMAR,
Petitioner-Appellant,

v.

UNITED STATES,
Respondent-Appellee.

On Appeal from the United States District Court for the District of Massachusetts
(No. 1:24-cv-12710-MLW; No. 1:21-cr-10157-AK)

APPELLANT MANISH KUMAR'S RESPONSE IN OPPOSITION TO THE GOVERNMENT'S MOTION FOR SUMMARY DISPOSITION, WITH INCORPORATED REQUESTS (1) TO HOLD THAT THE AUGUST 28, 2025 CERTIFICATE OF APPEALABILITY GOVERNS THE SCOPE OF THE APPEAL, OR TO RECONSIDER THE CLERK'S ORDERS OF MAY 8 AND JULY 1, 2026, OR ALTERNATIVELY TO GRANT LEAVE TO APPLY FOR AN EXPANDED CERTIFICATE; (2) TO LIFT THE STAY OF BRIEFING AND SET THE GOVERNMENT'S BRIEFING DATE; (3) ALTERNATIVELY TO VACATE AND REMAND FOR AN EVIDENTIARY HEARING; AND (4) FOR LEAVE UNDER FED. R. APP. P. 26(b) TO THE EXTENT REQUIRED

PRELIMINARY STATEMENT

Manish Kumar met with federal investigators eleven times, some of those meetings in Massachusetts, and gave them his account of his business along with access to his phones, computers and email. He did it without a proffer letter from the District of Massachusetts. His own lawyer later told the district court that those

statements and that device data were the primary evidence for the charges, including the drug conspiracies that now hold him for 87 months.

The Government's answer is that a proffer letter would not have protected the lie Kumar told at the last meeting. Kumar agrees. That concession disposes of Count 3, the false-statement count, and nothing else. A proffer letter does not protect a lie. It protects the truth, and the truth Kumar told is what the case on Counts 1 and 2 was built on. Whether he would have pleaded guilty to those counts had his own words been kept out of the Government's case-in-chief is a question of fact that no court has taken evidence on, and that two district judges have certified as one reasonable jurists could debate. A question of that kind is substantial, and Local Rule 27.0(c) does not reach it.

The Government's effort to confine the appeal fails for a related reason. The only judge who decided Kumar's motion certified its denial without limitation. The narrowing that followed began with an order the Clerk entered under Local Rule 27.0(d), a rule for routine procedural motions, when no motion was pending and no party had objected to the certificate. Kumar never received that order or the re-certification it prompted. The July 1 order that did reach him never said that Judge Wolf's certificate had been replaced. Waiver requires a known right knowingly given up. Kumar gave up nothing.

STATEMENT OF FACTS

A. The Meetings and the Case They Produced

After his August 2019 arrest on Rhode Island fraud charges, Kumar met with federal investigators in eleven sessions through February 27, 2020, "including in the District of Massachusetts." ECF 130 at 3. He provided information and authorized investigators to access his electronic devices, his Apple ID and his email accounts. *Id.* AUSA Basil opened an investigation in 2019 "with a cooperating witness, Manish Kumar." ECF 122-2 ¶ 2. By the Government's account, before February 27, 2020, it was not investigating Kumar for drug crimes; "[h]e was a cooperating witness." ECF 122 at 14 n.5.

Kumar had a proffer letter from the District of Rhode Island, of which the Government has produced only an unsigned copy. ECF 122 at 3 & n.2; ECF 122-1. He had none from the District of Massachusetts. ECF 122 at 3. The Rhode Island letter, whose terms the Government calls standard, ECF 122 at 8, provides that no statement "or other information provided" by Kumar will be used against him directly "in the case-in-chief of any criminal case," so long as he is truthful. ECF 122-1 ¶ 1. Untruthful statements may be used in a prosecution for false statements, *id.*, and the Government may make derivative use of what it learns, *id.* ¶ 3.

At the February 27, 2020 meeting in Boston, attended by Kumar's counsel and AUSA Basil, Kumar falsely denied that his business dealt in controlled substances. ECF 122-2 ¶ 3; ECF 130 at 4. Agents then began investigating him "as a target." ECF 122-2 ¶ 3. Judge Wolf found that what Kumar provided at that session "was the starting point" for the investigation. ECF 130 at 20. The indictment charged two drug-related conspiracies and one false statement. ECF 130

at 5-6. Kumar's counsel told the district court that the "primary evidence" for the charges was Kumar's statements to law enforcement "and the data from his personal electronics which he gave to law enforcement." ECF 75 at 2.

B. The Plea

Kumar did not want to plead. He asked for new counsel because his first lawyer would not file a motion to dismiss, parted with a second, filed the motion himself, and maintained it once counsel was appointed. ECF 122 at 5-6; ECF 75. The Government told the district court that "[a]ll indications are that Kumar intended to fight the drug charges and the false statement charge." ECF 122 at 16. In September 2022, counsel withdrew the motion "in light of his request for a Rule 11 Hearing." ECF 80. Kumar wrote the court that he was withdrawing it and pleading guilty because he believed his guideline range was 15 to 20 months. ECF 122 at 6. He pleaded guilty to all three counts without a plea agreement. The final presentence report set a range of 87 to 108 months, and he received 87. ECF 130 at 6, 8.

C. The Ruling and the Certificate

Kumar's pro se § 2255 motion raised ineffective assistance in failing to obtain proffer protection, ineffective assistance at sentencing, vindictive prosecution and pre-indictment delay. ECF 130 at 9, 12-13. The Government asked the court to deny it "without holding an evidentiary hearing," ECF 122 at 1. Judge Wolf decided the motion on the papers. On the proffer claim he assumed deficient performance and found no prejudice because proffer letters "typically do not

protect a person from prosecution for making false statements" and because there was no evidence a Massachusetts agreement would have barred derivative use. ECF 130 at 13-14. He then wrote: "In view of the low bar to obtaining a COA and the unusual facts of this case, the court is issuing a COA." *Id.* at 22. His order provides: "A Certificate of Appealability of the denial of Kumar's 2255 Motion is hereby ISSUED." *Id.* Kumar did not receive that order in time to appeal, as the district court later found. ECF 137.

D. The Orders That Narrowed the Certificate

Kumar filed his notice of appeal on February 11, 2026, and the case was reassigned to Judge Kelley the same day. ECF 132; ECF 133. On May 1, 2026, mail sent to Kumar by the district court was returned as undeliverable. ECF 139. On May 8, 2026, with no motion pending, an order "Entered . . . Pursuant to 1st Cir. R. 27.0(d)" and signed by the Clerk stated: "The district court is requested to identify which issue or issues satisfy the standard set forth in 28 U.S.C. § 2253(c)(2) and to forward its decision to this court." Ex. E. Judge Kelley read it as an order "to issue a new Certificate of Appealability" that "directed this Court to re-certify the appeal." ECF 141. Applying the certificate standard afresh, she certified the proffer claim and the delay claim and declined to certify the other two. *Id.* On the proffer claim she wrote: "Reasonable jurists could disagree with this finding, as well as with whether counsel's failure to obtain an immunity agreement caused Defendant to suffer prejudice." *Id.* A July 1, 2026 order, also entered under Rule 27.0(d), stated that "[t]he district court issued a certificate of appealability as

to the following issues," listed the proffer and delay claims, and set July 31 as the deadline to apply for an expanded certificate. Ex. E. It did not mention Judge Wolf's certificate or say that a new one had replaced it. *Id.*

Mail at FCI Fort Dix reaches Kumar sporadically, and court mail has arrived late or not at all. Kumar Decl. ¶ 2. He never received the May 8 order or the June 25 order. *Id.* ¶¶ 3-4. He did receive the July 1 order, and, with no notice that Judge Wolf's certificate had been revisited, he took it for a standard form sent in § 2255 appeals. *Id.* ¶ 5. Believing Judge Wolf's certificate covered every claim, he wrote his opening brief on that basis and filed it on August 24, 2026. *Id.* ¶ 8. The brief says so: it describes the certificate as the one the district court issued with its decision, "noting the 'unusual facts of this case,'" and never mentions a June 25 order. Appellant's Br. 12, 17. Prison officials delivered the Government's motion to Kumar on or about September 30, 2026, and he learned from it that the certificate had been narrowed. Kumar Decl. ¶ 7.

ARGUMENT

Summary disposition is available only "if it shall clearly appear that no substantial question is presented." 1st Cir. R. 27.0(c). The proffer claim presents one, and the certificate that governs this appeal reaches every claim Kumar raised.

I. THE PROFFER CLAIM PRESENTS A SUBSTANTIAL QUESTION THAT NO COURT HAS ANSWERED

A. A Proffer Letter Protects Truthful Statements, and Truthful Statements Built the Drug Case

The Government defends the ruling below on two grounds: a proffer letter would not have shielded Kumar's false statements, and it would not have barred derivative use. Mot. 6. Both are true, and neither decides the claim.

The Government does not defend counsel's performance; it assumes deficiency for argument's sake, Mot. 6, as Judge Wolf did, ECF 130 at 13. The record explains why. AUSA Basil had treated Kumar as a cooperating witness since 2019, ECF 122-2 ¶ 2, and the February 2020 meeting in Boston was called to probe Kumar's possible cooperation "including as to drug crimes," *id.* ¶ 3. Counsel brought Kumar into that room knowing that AUSA Basil sat across the table, and holding no letter from the District of Massachusetts. The only live question is prejudice.

The first ground answers Count 3. No proffer letter would have protected what Kumar said on February 27, 2020; the standard letter excludes untruthful statements by its terms. ECF 122-1 ¶ 1. Kumar concedes the point. But Count 3 is a false-statement count with a five-year statutory maximum. 18 U.S.C. § 1001(a). The 87-month sentence was driven by the guideline calculation for the drug conspiracies, including a $3.5 million loss figure. ECF 130 at 6. The false-statement rationale does not touch those counts.

The second ground answers half of the remaining question. The standard letter permits derivative use, but it forbids direct use of truthful statements "or other information provided" by the defendant in "the case-in-chief of any criminal case."

ECF 122-1 ¶ 1. Direct use is exactly what Kumar's counsel described in identifying Kumar's statements and the device data Kumar handed over as the "primary evidence" in the case. ECF 75 at 2. The Government's own motion makes the point: the facts it calls overwhelming include the "numerous spreadsheets on his computer" that recorded the drug sales. Mot. 3, 7. Kumar gave investigators access to that computer during the proffer sessions. ECF 130 at 3. Whether data a defendant hands over in a proffer is "information provided," barred from the case-in-chief, or merely a lead the Government may pursue, is a question the district court never addressed. Nor did the court ask what proof of Counts 1 and 2 would have remained once Kumar's own words and files were excluded.

The absence of protection was not a technicality. Judge Wolf found no showing that the Rhode Island letter bound the Government in Massachusetts. ECF 130 at 14. On that finding, nothing Kumar said in any of the eleven sessions was protected in the case the Government brought against him.

The Government reframes the claim as one about suppression and argues that Kumar cannot show any evidence "would have been suppressible" or that he could have won dismissal. Mot. 6-7. A proffer letter is not a suppression doctrine that a defendant must establish through the Fourth or Fifth Amendment. It is an agreement, and the Government's own form spells out its effect: "No proffered statement or other information provided by your client will be used against him directly in the case-in-chief of any criminal case," so long as the client is truthful. ECF 122-1 ¶ 1. A defendant holding that letter needs no constitutional theory to keep his words out of the Government's case. He needs only to show what the

Government promised. Counsel's failure to secure that promise from the Government in the District of Massachusetts is what left those words available.

B. The Prejudice Question Is What Kumar Would Have Done, and the Record Answers It

Where a defendant has pleaded guilty, prejudice means "a reasonable probability that, but for counsel's errors, he would not have pleaded guilty and would have insisted on going to trial." *Hill v. Lockhart*, 474 U.S. 52, 59 (1985). In *Hill*, the petitioner lost because he never alleged that, properly advised, he would have gone to trial. *Id.* at 60. The Supreme Court later made clear that the inquiry "focuses on a defendant's decisionmaking, which may not turn solely on the likelihood of conviction after trial." *Lee v. United States*, 582 U.S. 357, 367 (2017). In *Lee*, a defendant with no viable defense established prejudice because the record showed that avoiding deportation was decisive for him, and the Court directed judges to "look to contemporaneous evidence to substantiate a defendant's expressed preferences." *Id.* at 369.

The contemporaneous evidence here is unusually strong, and much of it comes from the Government. Kumar changed lawyers to get a motion to dismiss filed, filed it himself, and kept it alive with appointed counsel. ECF 122 at 5-6. The Government told the district court that "[a]ll indications are that Kumar intended to fight the drug charges." ECF 122 at 16. He gave up that fight only on the belief that he faced 15 to 20 months, and he received 87. ECF 122 at 6. A defendant who resisted pleading while facing a case built on his own statements had every reason to resist harder had those statements been excluded from it. The Government's

response, that overwhelming evidence and the acceptance-of-responsibility reduction gave Kumar every incentive to plead, Mot. 7, assumes the evidence would have been the same. That assumption is the disputed question.

The Government's authorities do not resolve it. In *United States v. Caramadre*, 807 F.3d 359, 371 (1st Cir. 2015), a direct appeal from the denial of a plea-withdrawal motion, the district court had held a multi-day evidentiary hearing, and the defendant never explained why better advice would have led him to continue his trial. In *United States v. Fernández-Santos*, 856 F.3d 10, 17-18 (1st Cir. 2017), also a direct appeal, this Court declined to decide an ineffective-assistance claim on an undeveloped record and left it for a § 2255 proceeding where facts could be found. Kumar is in that proceeding, and he has explained exactly why he would have chosen differently.

The Government also faults Kumar's pro se brief for not engaging the prejudice ruling. Mot. 7. That brief argues that the proffer sessions supplied the foundation for the Government's Massachusetts case and that counsel's failure caused it. Appellant's Br. 47-50. Rule 27.0(c) asks whether the claim clearly presents no substantial question, not whether a prisoner without counsel framed it as a lawyer would.

C. A Ruling Without a Hearing Leaves Nothing for Clear-Error Deference to Attach To

The Government asks for review of the prejudice "findings" for clear error, citing *Dugas v. Coplan*, 506 F.3d 1, 3 (1st Cir. 2007). Mot. 7. In *Dugas*, this Court had remanded an ineffective-assistance claim; the district court allowed discovery,

took affidavits and held an evidentiary hearing before finding no prejudice, and this Court deferred to findings made on that record. Here there was no hearing, no testimony and no finding about what Kumar would have done. The ruling rested on what proffer letters "typically" say, ECF 130 at 13, a proposition about documents, not a credibility determination. The record also left basic facts unresolved: the order describes eleven sessions "including in the District of Massachusetts" in one place and a "single proffer session" in Massachusetts in another. *Id.* at 3, 19.

Section 2255(b) requires a hearing "[u]nless the motion and the files and records of the case conclusively show that the prisoner is entitled to no relief." A hearing is unnecessary only when the motion is facially inadequate or "conclusively refuted as to the alleged facts by the files and records of the case." *United States v. McGill*, 11 F.3d 223, 225-26 (1st Cir. 1993) (quoting *Moran v. Hogan*, 494 F.2d 1220, 1222 (1st Cir. 1974)). Nothing in this record refutes Kumar's account of why he pleaded; the Government's own filings support it. The Government acknowledged below that a live issue would require evidence from Kumar's former counsel. ECF 122 at 17. Two judges have found the issue live. At a minimum, it warrants full briefing, and if the Court reaches the merits, a remand for the hearing the statute requires.

II. JUDGE WOLF'S CERTIFICATE GOVERNS THE SCOPE OF THIS APPEAL

The Government says Kumar's remaining claims fall outside "the limited scope of the COA." Mot. 9. The certificate that governs is Judge Wolf's, and it has no limits.

A. Judge Wolf Certified Every Claim the Motion Raised

A certificate must "indicate which specific issue or issues satisfy" the substantial-showing standard, 28 U.S.C. § 2253(c)(3), and a district court that issues one "must state the specific issue or issues" that do, Rule 11(a), Rules Governing Section 2255 Proceedings. This Court has held that certificates are issue-specific: a petitioner granted a certificate on some issues may not argue others without obtaining a certificate for them. *Bui v. DiPaolo*, 170 F.3d 232, 236-37 (1st Cir. 1999). Kumar accepts both rules. Neither is offended here.

Judge Wolf analyzed each of Kumar's claims, ECF 130 at 12-21, and then certified "the denial of Kumar's 2255 Motion," *id.* at 22, which is to say every claim the motion raised. He gave a reason that applies to all of them: "the low bar to obtaining a COA and the unusual facts of this case." *Id.* Those facts run through every claim. A cooperating witness, prosecuted in a second district on the strength of his own unprotected cooperation, charged after he had served his first sentence, and sentenced with a criminal history that the Rhode Island case supplied, raises the proffer claim, the delay claim, the vindictiveness claim and the sentencing claim alike. A judge who found those facts unusual enough to warrant appellate review had no reason to sort among the claims they produced, and Judge Wolf did not. *Bui* itself recognized this situation. When the district court finds that all of a petitioner's issues pass the substantial-showing standard, "a free-ranging appeal lies." 170 F.3d at 236. This Court's rules say the same: "If the district court grants a certificate of appealability on all issues, the petitioner's appeal shall go forward." 1st Cir. R. 22.0(d). The issue-specific rule of *Bui* exists to stop a petitioner from

using one certified claim to carry uncertified ones. *Bui*, 170 F.3d at 236-37. It has no work to do when the judge certified them all. Judge Wolf did not list the claims by number, but a certificate covering the denial of the whole motion identifies its issues as surely as a list would.

B. A Clerk's Order Could Not Reopen a Certificate No Party Had Challenged

Even if the certificate's form fell short of § 2253(c)(3), that defect would not have permitted what followed. In *Gonzalez v. Thaler*, 565 U.S. 134 (2012), a circuit judge issued a certificate that identified only a procedural question and no constitutional issue at all, and the State later argued that the omission defeated the court of appeals' jurisdiction. The Supreme Court held that § 2253(c)(3) is not jurisdictional. *Id.* at 143. It is mandatory in a specific sense: "If a party timely raises the COA's failure to indicate a constitutional issue, the court of appeals panel must address the defect by considering an amendment to the COA or remanding to the district judge for specification of the issues." *Id.* at 146. Three features of that holding matter here. A party must raise the defect; neither party did. The court of appeals panel must address it; no panel did. And the remedy is specification of the issues the district judge certified, not a fresh decision withdrawing certification from issues already certified.

The May 8 order did not come from a panel. It states on its face that it was "Entered . . . Pursuant to 1st Cir. R. 27.0(d)," and it is signed by the Clerk. Ex. E. Rule 27.0(d) authorizes the Clerk "to dispose of certain routine, procedural motions." The Court's operating procedures give as typical examples motions to

enlarge time, consolidate, correct filings, correct captions and withdraw counsel, and they explain that "a clerk's order states on its face that it is entered pursuant to 1st Cir. R. 27.0(d)." I.O.P. V(C). The order is captioned "Order of Court" and closes "By the Court," but so does the July 1 order, and the operating procedures identify a clerk's order by its recital of Rule 27.0(d), which both orders bear. The May 8 order disposed of no motion, because none was pending. It instead set in motion the reconsideration of a certificate, which is not a routine procedural matter. When this Court adopted its procedure for limited certificates, it committed certificate determinations to three-judge panels. *Bui*, 170 F.3d at 238 n.2; *see* Fed. R. App. P. 22(b)(2). No rule commits them to the Clerk.

The order asked the district court only to "identify" the issues that satisfied the standard. What it produced was different. Judge Wolf, the judge who decided the motion, had found every issue certifiable. Judge Kelley, to whom the case had been reassigned, read the request as a directive "to issue a new Certificate of Appealability" and re-decided the question, withdrawing certification from two claims. ECF 141. In *Grant-Chase v. Commissioner*, 145 F.3d 431, 435 (1st Cir. 1998), this Court set aside a local rule that required a petitioner holding a district judge's certificate to obtain a second one here, because § 2253(c) "contemplates the issuance of only one certificate before an appeal to this court may be taken." Judge Wolf's certificate was that one. And a notice of appeal "divests the district court of its control over those aspects of the case involved in the appeal." *Griggs v. Provident Consumer Discount Co.*, 459 U.S. 56, 58 (1982) (per curiam). *Griggs* rests on the principle that a district court and a court of appeals "should not attempt

to assert jurisdiction over a case simultaneously." *Id.* After Kumar's appeal was docketed on Judge Wolf's certificate, any narrowing of that certificate required this Court's authority, exercised as *Gonzalez* describes. A request the Clerk issued under Rule 27.0(d) did not supply it.

The rules also supply the remedy. A party "adversely affected by the action of the clerk" may move for reconsideration, and the motion goes to a judge or panel unless the Clerk grants it. 1st Cir. R. 27.0(d); *see* Fed. R. App. P. 27(b). Those provisions speak of clerk action on a motion, and an order entered under the same rule without any motion can be no less open to review. Kumar could not seek reconsideration of a May 8 order he never received, and nothing in the July 1 order disclosed it. He asks the Court to treat this response as that motion and to vacate the May 8 and July 1 orders insofar as they displace Judge Wolf's certificate.

C. Kumar Did Not Knowingly Waive Claims He Was Never Told Had Been Uncertified

The Government treats Kumar's failure to meet the July 31 deadline as dispositive. Mot. 5, 9. *Bui* says only that missing such a deadline "may be deemed to constitute a waiver." 170 F.3d at 237. The word is permissive, and the Government's own authority explains why it must be. "A party waives a right when he intentionally relinquishes or abandons it." *United States v. Rodriguez*, 311 F.3d 435, 437 (1st Cir. 2002). Kumar could not relinquish a right he did not know was at stake. He never received the May 8 order or the June 25 order, the only papers that disclosed that his certificate had been revisited. Kumar Decl. ¶¶ 3-4. The July 1 order did reach him, but it never mentioned Judge Wolf's certificate, Ex. E, and a

prisoner without counsel holding a certificate on the denial of his entire motion read it, as Kumar did, as a form order sent in every § 2255 appeal. Kumar Decl. ¶ 5. An order that never disclosed the narrowing could not supply the knowledge a waiver requires. The district court has already found that court mail failed to reach him once in this very proceeding, ECF 137, and mail sent to him came back undeliverable a week before the May 8 order issued, ECF 139. Throughout, Kumar litigated on the premise that Judge Wolf's certificate controlled. Kumar Decl. ¶ 8; Appellant's Br. 12, 17.

The Government's cases involve nothing like this. In *Peralta v. United States*, 597 F.3d 74, 83-84 (1st Cir. 2010) (per curiam), the petitioner himself asked the district court to certify two issues, received exactly that certificate, and then briefed issues he had never asked anyone to certify. In *Vargas-De Jesús v. United States*, 813 F.3d 414, 419 n.6 (1st Cir. 2016), this Court had issued a certificate on an issue it framed, and the petitioner argued a different point he never sought to certify. Each petitioner knew the scope of his certificate because he had asked for it or received it. Kumar received an unrestricted certificate and was never told it had been narrowed.

If the Court concludes that the June 25 order governs, Kumar asks in the alternative for leave to apply for an expanded certificate within 30 days of the Court's order. *Bui* contemplates exactly that sequence: when a petitioner seasonably seeks to expand a limited certificate, the appeal on the certified issues is held in abeyance until the request is decided. 170 F.3d at 238. An application filed promptly after Kumar first learned of the narrowing is seasonable.

III. THE DELAY CLAIM RISES OR FALLS WITH THE PLEA

Judge Kelley certified the pre-indictment delay claim because reasonable jurists could disagree with the district court's conclusion about the pandemic's effect on the delay. ECF 141. The Government's lead response is waiver, by withdrawal of the motion to dismiss and by the unconditional plea. Mot. 7-8.

Both waivers depend on the plea. Counsel withdrew the motion "in light of his request for a Rule 11 Hearing," ECF 80, and Kumar told the court he was withdrawing it to plead guilty because he believed he faced 15 to 20 months, ECF 122 at 6. The withdrawal was a step toward the plea, and it can stand no firmer than the plea it served. *United States v. Concepción-Guliam*, 62 F.4th 26, 31 (1st Cir. 2023), and *Rodriguez*, 311 F.3d at 437, enforced withdrawals on direct appeal against defendants who abandoned a claim in the district court and then tried to revive the same claim on appeal; neither involved a withdrawal made to enter a plea that is itself under collateral attack. *Tollett v. Henderson*, 411 U.S. 258, 267 (1973), bars independent pre-plea claims but preserves the defendant's right to attack "the voluntary and intelligent character of the guilty plea" through counsel's advice. And in *United States v. Gaffney*, 469 F.3d 211, 214-15 (1st Cir. 2006), this Court declined to rest on *Tollett* and decided the claim on other grounds.

On the merits, the Government's account of the delay deserves a hearing rather than acceptance. AUSA Basil attested that the plan had been to charge Kumar "with a co-conspirator later in the year," and that the May 2021 complaint was sought only after AUSA Basil learned that Kumar had been released from Bureau of Prisons custody. ECF 122-2 ¶ 8. The timing of the charge, in other

words, was a choice, not the product of the investigation's completion. Whether that choice served investigation or tactical advantage is debatable, as Judge Kelley found. If the plea falls, this claim returns with it.

IV. THIS RESPONSE IS PROPERLY BEFORE THE COURT

No order set a date for this response, Kumar Decl. ¶ 6, and the Court has not ruled on the motion. Rule 27.0(c) provides for summary disposition "on such notice as the court may order." To the extent the ten-day period of Fed. R. App. P. 27(a)(3)(A), extended under Rule 26(c) for service by mail, applies, the Court may extend it, Fed. R. App. P. 27(a)(3)(A), and "may permit an act to be done after that time expires" for good cause, Fed. R. App. P. 26(b). Kumar asks it to do so. Good cause is shown by the facts set out above. Prison officials did not deliver the Government's motion to Kumar until on or about September 30, 2026, after a ten-day period measured from mailing would already have run and on the same day the Court granted the stay as unopposed. Kumar Decl. ¶ 7. Kumar is a pro se prisoner whose court mail arrives late or not at all, *id.* ¶ 2, and the district court has already found that he did not receive a dispositive order in this case, ECF 137. The Government suffers no prejudice. Briefing is stayed at its request, and its motion remains under submission.

The stay rests on the motion for summary disposition. The Government sought it only because, "[i]f the Court grants summary disposition, full briefing will be unnecessary." Gov't Mot. to Stay ¶ 3. Once the motion is denied, the stay should be lifted and a date set for the Government's brief.

CONCLUSION

The Court should (1) deny the Government's motion for summary disposition; (2) hold that the August 28, 2025 certificate of appealability governs the scope of this appeal, or, treating this response as a motion under Local Rule 27.0(d), vacate the May 8 and July 1, 2026 orders to the extent they displace that certificate, or, alternatively, grant Kumar leave to apply for an expanded certificate within 30 days; (3) lift the stay and set a date for the Government's brief; (4) alternatively, vacate the denial of the proffer claim and remand for an evidentiary hearing under 28 U.S.C. § 2255(b); and (5) to the extent required, grant leave under Fed. R. App. P. 26(b) to file this response.

Respectfully submitted,

_____

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FCI Fort Dix
P.O. Box 2000
Joint Base MDL, NJ 08640-0000

Dated: _____, 2026

CERTIFICATE OF COMPLIANCE

This response complies with the type-volume limit of Fed. R. App. P. 27(d)(2)(A) because, excluding the parts of the document exempted by Fed. R. App. P. 32(f), it contains 5,142 words. It complies with the typeface and type-style requirements of Fed. R. App. P. 27(d)(1)(E) and 32(a)(5)-(6) because it has been prepared in a proportionally spaced typeface in 14-point type.

_____

Manish Kumar

CERTIFICATE OF SERVICE AND DECLARATION OF INMATE FILING

I, Manish Kumar, declare that on _____, 2026, I deposited in the internal legal mail system at FCI Fort Dix, with first-class postage prepaid, an envelope addressed to the Clerk, United States Court of Appeals for the First Circuit, John Joseph Moakley U.S. Courthouse, 1 Courthouse Way, Suite 2500, Boston, MA 02210, containing the original and three copies of this response, the Declaration of Manish Kumar, and Exhibits A through F. Fed. R. App. P. 25(a)(2)(A)(iii).

On the same date, I served a copy of the same papers by depositing them in the same legal mail system, with first-class postage prepaid, addressed to: Donald C. Lockhart, Assistant U.S. Attorney, and Kriss Basil, Assistant U.S. Attorney, United States Attorney's Office, 1 Courthouse Way, Suite 9200, Boston, MA 02210.

I declare under penalty of perjury under the laws of the United States of America that the foregoing is true and correct. 28 U.S.C. § 1746.

Executed on _____, 2026, at Joint Base MDL, New Jersey.

_____

Manish Kumar

UNITED STATES COURT OF APPEALS
FOR THE FIRST CIRCUIT

No. 26-1250

MANISH KUMAR,
Petitioner-Appellant,

v.

UNITED STATES,
Respondent-Appellee.

DECLARATION OF MANISH KUMAR IN SUPPORT OF APPELLANT'S RESPONSE IN OPPOSITION TO THE GOVERNMENT'S MOTION FOR SUMMARY DISPOSITION

I, Manish Kumar, declare as follows:

1. I am the Petitioner-Appellant in this appeal. My federal register number is 83763-053. I have been incarcerated at FCI Fort Dix, P.O. Box 2000, Joint Base MDL, New Jersey 08640, throughout 2025 and 2026. I make this declaration from my own personal knowledge.

2. Mail delivery to me at FCI Fort Dix has been sporadic. Court mail addressed to me has arrived late or has not arrived at all. I did not receive notice of the district court's August 28, 2025 Memorandum and Order until January 27, 2026.

3. I never received the order of this Court dated May 8, 2026, which requested the district court to identify the issues satisfying 28 U.S.C. § 2253(c)(2).

4. I never received the district court's order dated June 25, 2026, which issued a certificate of appealability on two issues.

5. I received the order of this Court dated July 1, 2026. It did not say that Judge Wolf's certificate of appealability had been replaced or that a new certificate had been issued, and I had not received the May 8 or June 25, 2026 orders. I believed it was a standard form order sent to appellants in § 2255 appeals. I did not understand it to mean that my certificate of appealability had been limited to two issues.

6. I have never received any order setting a date by which I was to respond to the Government's motion for summary disposition.

7. Prison officials delivered the Government's motion for summary disposition to me on or about September 30, 2026. Before I received it, I did not know that the certificate of appealability in my case had been limited to two issues. I learned that only from the Government's motion.

8. Until I received the Government's motion, I believed that the certificate of appealability Judge Wolf issued on August 28, 2025 covered every ground raised in my § 2255 motion. I prepared and filed my opening brief in this Court on that understanding.

9. If I had known before July 31, 2026 that Judge Wolf's certificate of appealability had been replaced by a certificate limited to two issues, I would have applied to this Court for an expanded certificate of appealability by that date.

I declare under penalty of perjury under the laws of the United States of America that the foregoing is true and correct. 28 U.S.C. § 1746.

Executed on _____, 2026, at FCI Fort Dix, Joint Base MDL, New Jersey.

Manish Kumar
Fed. Reg. No. 83763-053

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Declaration of Manish Kumar (28 U.S.C. § 1746), immediately preceding this index.

Exhibit A. ECF 130 — Memorandum and Order, August 28, 2025 (D. Mass., Wolf, J.).

Exhibit B. District court docket report, entries ECF 133 through 142 (including ECF 133, 137, 139, 140 and 141).

Exhibit C. ECF 122 — Government's Opposition to § 2255 Motion, with ECF 122-1 (Rhode Island proffer letter) and ECF 122-2 (Basil affidavit).

Exhibit D. ECF 75 — Supplemental Memorandum in Support of Motion to Dismiss (May 12, 2022).

Exhibit E. Orders of this Court entered May 8, 2026 and July 1, 2026, No. 26-1250.

Exhibit F. ECF 80 — Motion to Withdraw Motions to Dismiss (September 2, 2022).

EXHIBIT A

ECF 130 — Memorandum and Order, August 28, 2025 (D. Mass., Wolf, J.)

UNITED STATES DISTRICT COURT
DISTRICT OF MASSACHUSETTS

UNITED STATES OF AMERICA	)	
	)	
v.	)	Civ. No. 1:24-12710-MLW
	)	Cr. No. 1:21-10157-MLW
MANISH KUMAR	)	
Defendant.	)	

MEMORANDUM AND ORDER

WOLF, D.J. August 28, 2025

In 2023, defendant Manish Kumar pled guilty to conspiring to smuggle misbranded drugs and controlled substances into the United States and to making false statements to federal authorities. He was sentenced to serve 87 months in prison. Judgment, Dkt. No. 102. Shortly after his sentence was affirmed on appeal, Kumar filed a pro se Motion to Vacate, Set Aside, or Correct Judgment or Sentence pursuant to 28 U.S.C. § 2255 (the "2255 Motion"). Dkt. No. 120; see also Kumar v. United States, No. 1:24-cv-12710, Dkt. No. 1. The government opposes Kumar's 2255 Motion. See Dkt. No. 122.[1] For the reasons stated in the government's opposition and amplified in this Memorandum and Order, the 2255 Motion is being denied.

[1] Kumar also filed a motion to compel the government to provide materials cited in its opposition, Dkt. No. 124, in response to which the government voluntarily mailed Kumar a binder containing the requested materials, Dkt. No. 125. As discussed further below, Kumar's motion to compel is being denied as moot.

I. BACKGROUND

From at least March 2015 to August 2019, Kumar, an Indian national, participated in an operation selling adulterated or misbranded generic versions of prescription drugs, including Viagra and Cialis, and controlled substances, such as Adderall and the opioid Tramadol, to customers in the United States. See Aug. 12, 2024 Opinion of the U.S. Court of Appeals for the First Circuit in United States v. Kumar, No. 23-1087 (1st Cir. Aug. 24, 2024), docketed in this matter as Dkt. No. 117, at 2 ("Aug. 12, 2024 Opinion"). None of the pills involved were produced in a formulation approved by the Food and Drug Administration or sold with proper prescriptions. Id. Their importation and distribution, therefore, violated the Food, Drug, and Cosmetic Act, 21 U.S.C. § 331(a), and the Controlled Substances Act, 21 U.S.C. § 841(a)(1). Id. at 1-2.

Kumar was one of at least four partners in a New Delhi company, Mihu Business Solutions Pvt. Ltd., that was the parent company of several subsidiaries involved in the operation. Id. at 2. For his part, Kumar oversaw call centers in India that targeted customers in the United States. Id. at 3. Employing strategies directed by Kumar, the call center sales representatives made materially false statements to potential purchasers in the United States. Id. Kumar also played a role in the distribution of the

pills into the United States and in avoiding detection by United States authorities. Id. at 3-4.

A. Kumar's Proffers and District of Rhode Island Prosecution

On August 25, 2019, Kumar was arrested at JFK Airport in New York on a criminal complaint filed in the District of Rhode Island alleging conspiracy, wire fraud, and aggravated identity theft. See United States v. Kumar, D.R.I. No. 20-cr-00089-JJM-PAS; see Aug. 12, 2024 Opinion, Dkt. No. 117, at 4. The Rhode Island charges involved Kumar's use of overseas call centers to commit "Tech Fraud" and "Refund Fraud" in 2019 using, at least in part, customer credit card information obtained in connection with the sale of generic drugs at issue in this case. See Pre-Sentence Report ("PSR") ¶¶9, 10, 67.[2]

Beginning on the day of his arrest and concluding on February 27, 2020, Kumar met with federal authorities, including in the District of Massachusetts, who were investigating money laundering activity by Kumar's business associates among other things. PSR ¶10, 40. During eleven proffer sessions, Kumar provided information and authorized federal investigators to access various personal electronic devices and his Apple ID and email accounts.

[2] According to the PSR, the Rhode Island case did not involve "the conduct at issue in this case." See PSR ¶¶9, 67 ("[T]he Rhode Island charges related to computer technical support fraud (pop-up messages that lead to account takeovers or credit card fraud) and credit card fraud. . ..").

Defendant's Sent'g Memo., Dkt. No. 96, at 6; PSR at pp. 42-43 & n.15; Jan. 18, 2023 Sent'g Hrg. Tr., Dkt. No. 111, at 42. The PSR indicated that these meetings took place without any cooperation agreement. However, Kumar's counsel objected to this language in the PSR indicating, instead, that the meetings were pursuant to a proffer agreement in letter form. Defendant's counsel indicated he provided this letter to the Probation Office in connection with this case, but the Probation Office indicated it did not receive the letter. Compare PSR at p. 4 n.2, with PSR at pp. 42-43. At the final meeting, Kumar falsely denied involvement in the sale of controlled substances. PSR ¶¶10, 40; Jan. 18, 2023 Sent'g Hrg. Tr., Dkt. No. 111, at 35; Aug. 12, 2024 Opinion, Dkt. No. 117, at 4 n.2. Kumar's false statements during this final meeting, which took place in Boston, are the basis for his false-statement conviction in this case.

Eight months later, in late October 2020, Kumar was charged by information in the District of Rhode Island. In early November 2020, Kumar pled guilty, without a plea agreement, to seven counts, including one count of conspiracy to commit wire fraud, four counts of wire fraud, and two counts of aggravated identity theft. See Nov. 5, 2020 R. 11 Hrg. Tr., D.R.I. Case 1:20-cr-00089-JJM-PAS, Dkt. No. 22, at 10-11.

On February 11, 2021, in Rhode Island, Kumar was sentenced Kumar to "time served" on the fraud counts to be followed by a

consecutive 24-month term on the aggravated identity theft counts. Feb. 12, 2021 Judgment, D.R.I. Case 1:20-cr-00089-JJM-PAS, Dkt. No. 27. Kumar thereafter requested that the court correct the judgment to effectuate the court's stated intent in sentencing him by adjusting the sentence to allow for the time Kumar spent in pretrial custody to count toward the 24-month term imposed for aggravated identity theft. Mar. 24, 2021 Letter, D.R.I. Case 1:20-cr-00089-JJM-PAS, Dkt. No. 30. On April 1, 2021, the court issued an Amended Judgment correcting, pursuant to Federal Rule of Criminal Procedure 36, a clerical error in the custodial sentence on the wire fraud counts to adjust the term from "time served" to 1 day in custody with the 24-month aggravated identity theft sentence to be consecutive, for a total custodial sentence of 24 months and 1 day. PSR ¶67; see also Mar. 31, 2021 Text Order, D.R.I. Case 1:20-cr-00089-JJM-PAS; see also PSR ¶11. On May 7, 2021, Kumar was released to an Immigration and Customs Enforcement ("ICE") detainer. PSR ¶67. On May 13, 2021, while in immigration custody, Kumar was arrested on the charges in this case. See Aug. 12, 2024 Opinion, Dkt. No. 117, at 4.

B. Criminal Proceedings in this Case

The Indictment in this case charged Kumar with: (1) conspiracy to smuggle misbranded drugs and controlled substances into the United States in violation of 18 U.S.C. §§371, 545 and 21 U.S.C. §§331(a), 841(a)(1); (2) conspiracy to distribute controlled

substances in violation of 21 U.S.C. §846; and (3) making false statements in violation of 18 U.S.C. § 1001(a)(2). See Indictment, Dkt. No. 8; Aug. 12, 2024 Opinion, Dkt. No. 117, at 4.

On October 6, 2022, Kumar pled guilty to all three counts without a plea agreement. See Oct. 6, 2022 Rule 11 Hrg. Tr., Dkt. No. 91; Gov't Sentencing Memo., Dkt. 95, at 1.

The draft Presentence Report ("PSR") applied the fraud cross-reference from U.S.S.G. § 2N2.1, which directs the sentencing court to apply U.S.S.G. § 2B1.1(b)(1), and calculated the relevant loss amount for sentencing purposes as approximately $400,000.00. Aug. 12, 2024 Opinion, Dkt. No. 117, at 5. The final PSR, however, relied on the government's subsequent submissions, and calculated the loss as $3,500,000. Id. at 4-5. This resulted in an increase in the advisory Guideline range from 46-57 months in the draft PSR to 87-108 months in the final PSR. Id. at 5.

Pursuant to U.S.S.G. § 4A1.1(a), the PSR included three criminal history points for Kumar's Rhode Island conviction, which placed him in Criminal History Category II. PSR ¶¶67-69. Kumar did not object.

At sentencing, the parties disputed the Guidelines calculations, including the relevant Guideline provisions and the applicable loss amount, and sought different sentences. Concerning the Guidelines calculations, Kumar argued, through counsel, that applying the cross-reference to U.S.S.G. § 2B1.1(b)(1) was

improper, id. at 3-4, and, in any event, that the government's proposed loss figure was "excessive and at odds with [the government's] contention that there are no victims to the offense and no contemplated restitution amount," id. at 4, and speculative, including that uncertainty regarding the sales amounts and quantities warranted a downward variance, id. at 5. The court rejected Kumar's arguments. See Jan. 18, 2023 Sent'g Hrg. Tr., Dkt. No. 111, at 23-27 (rejecting defendant's objection to applying the cross-reference to 2B1.1), 31-32 (rejecting defendant's objection to the PSR's loss calculation).

Concerning the appropriate sentence, Kumar sought a sentence of time served, which was the equivalent of approximately 20 months. Id. at 2; Jan. 18, 2023 Sentencing Hrg. Tr., Dkt. No. 111, at 41. Kumar argued for a variance that would "categorize at least under fairness and equity Kumar as Criminal History Category I," based on what he called "sequential" prosecutions in Rhode Island and Massachusetts for "overlap[ing] conduct," and the need to avoid unwarranted sentencing disparities, citing statistics indicating the prevalence of sentencing variances in this district and citing specific examples of three defendants who received "proportionate" sentences of 3 years, 2 years, and 3.5 years. See Defendant's Sentencing Memo., Dkt. No. 96, at 7-9; Jan. 18, 2023 Sent'g Hrg. Tr., Dkt. No. 111, at 43-44. Defendant's counsel also conceded that, given the court's denial of the defendant's objections

discussed above, a single prosecution would not have resulted in a lower Guideline calculation and that the separate prosecutions were not undertaken due to an improper motive on the part of the government. Jan. 18, 2023 Sent'g Hrg. Tr., Dkt. No. 111, at 44.

The government sought a low-end advisory Guideline sentence of 87 months, no fine, and the maximum term of supervised release, arguing that 87 months would also be in the middle the applicable advisory Guideline range if Kumar had been in Criminal History Category I. see Gov't Sentencing Memo., Dkt. 95, at 1; Jan. 18, 2023 Sent'g Hrg. Tr., Dkt. No. 111, at 34-40.

The court imposed a prison sentence of 87 months to be followed by 36 months of supervised release and a fine of $100,000 to be paid on a schedule determined by the court if Kumar remained in the United States. See Judgment, Dkt. No. 102; see also Jan. 18, 2023 Sent'g Hrg. Tr., Dkt. No. 111, at 47-52 (imposing sentence). At the sentencing hearing, the court noted that it had considered imposing a sentence of 72 months until Kumar stated, in open court, that he provided incorrect answers during the final proffer session because he could did not understand the government's questions. Jan. 18, 2023 Sent'g Hrg. Tr., Dkt. No. 111, at 50. The court found this statement contradicted Kumar's guilty plea and indicated to the court that Kumar had not "learned

his lesson." Id. at 50-51 (noting the sentence is intended to send a message).[3]

C. The Appeal

Kumar appealed his sentence claiming that this court misapplied the fraud cross-reference contained in U.S.S.G. § 2N2.1, and miscalculated the loss amount. See Aug. 12, 2024 Opinion, Dkt. No. 117, at 7. The Court of Appeals rejected both claims and affirmed Kumar's sentence. Id. at 10, 18, 19.

D. The 2255 Motion

In the instant 2255 Motion, Kumar argues that: (1) he received ineffective assistance of counsel in several respects; (2) that he was the subject of vindictive prosecution; and (3) that the government's delay in bringing the charges was prejudicial in violation of the Fifth Amendment. 2255 Motion, Dkt. No. 120, at 2-7. The government opposed the 2255 Motion, requesting that it be denied based on the parties' submissions. See Gov't Opposition to 2255 Motion, Dkt. No. 122. Kumar filed a Reply. See Reply, Dkt. No. 123. He also filed a "Motion to Compel," requesting that the court order the government to provide him copies of "all record citations and referenced materials" in its opposition in order to

[3] On February 2, 2023, Kumar filed a letter addressed to the United States Attorney and entitled "Motion to Reduce Sentence. Rule 35(b)." Dkt. No. 108. Federal Rule of Criminal Procedure 35 does not authorize the court to reduce Kumar's sentence in the circumstances of this case. Therefore, the motion is being denied.

provide him meaningful access to the courts. See Motion to Compel, Dkt. No. 124. The government objects to Kumar's Reply. See Gov't Response to Reply and Motion to Compel, Dkt. No. 125. It also responded that his Motion to Compel should be denied as moot because on January 3, 2025, the government mailed Kumar "a binder containing the PACER documents he requested." See id. at 2. Kumar subsequently filed a Supplemental Reply. See Dkt. No. 126.

II. LEGAL STANDARD

Pursuant to 28 U.S.C. § 2255, a federal prisoner may move to vacate, set aside, or correct his sentence. Relief may be granted, on the grounds that (1) "the sentence was imposed in violation of the Constitution or laws of the United States," (2) "the court was without jurisdiction to impose such sentence," (3) "the sentence was in excess of the maximum authorized by law," or (4) the sentence is otherwise "subject to collateral attack." See 28 U.S.C. § 2255(a); see also Knight v. United States, 37 F.3d 769, 772 (1st Cir. 1994). In collaterally attacking a conviction, the burden is on the petitioner to show by a preponderance of the evidence entitlement to relief, see David v. United States, 134 F.3d 470, 474 (1st Cir. 1998), including entitlement to an evidentiary hearing, see Cody v. United States, 249 F.3d 47, 54 (1st Cir. 2001); see also Rules 4 and 8 of the Rules Governing Section 2255 Proceedings.

Where a petitioner claims that his counsel was ineffective in violation of the Sixth Amendment to the United States Constitution, he must establish both prongs of the standard set out in Strickland v. Washington, which stated that "judicial scrutiny of counsel's performance must be highly deferential." 466 U.S. 668, 687, 689 (1984). First, the petitioner must show that counsel's performance was deficient. The performance inquiry asks whether counsel's assistance "was reasonable considering all the circumstances" using the "[p]revailing norms of practice" as a guide. Id. at 688. Second, the petitioner must show that the deficient performance prejudiced the defense. Id. at 687. Prejudice will be established where "there is a reasonable probability that, but for counsel's unprofessional errors, the result of the proceeding would have been different." Id. at 694.

"Evidentiary hearings on § 2255 petitions are the exception, not the rule," so there is a "fairly heavy burden" on the petitioner to demonstrate that an evidentiary hearing is warranted. United States v. McGill, 11 F.3d 223, 225 (1st Cir. 1993) (citations omitted). An evidentiary hearing is not necessary when a § 2255 motion is inadequate on its face, or, although facially adequate, is conclusively refuted as to the alleged facts by the files and records of the case. See Moreno-Morales v. United States, 334 F.3d 140, 145 (1st Cir. 2003) (quoting United States v. DiCarlo, 575 F.2d 952, 954 (1st. Cir. 1978)); see also Rule

4(b) of the Rules Governing Section 2255 Proceedings ("If it plainly appears from the face of the motion and any annexed exhibits and the prior proceedings in the case that the movant is not entitled to relief in the district court, the [court] shall make an order of summary dismissal."). When "a petition for federal habeas relief is presented to the judge who presided at the petitioner's trial, the judge is at liberty to employ the knowledge gleaned during previous proceedings and make findings based thereon without convening an additional hearing." McGill, 11 F.3d at 225.

III. ANALYSIS

The court construes Kumar's pro se filing liberally. See Erickson v. Pardus, 551 U.S. 89, 94 (2007); Estelle v. Gamble, 419 F.3d 20, 106 (1976). Even construing his pro se motion liberally, none of Kumar's claims are meritorious.

In essence, Kumar claims that the following events, together, render his conviction and sentence infirm and require that they be vacated. See 2255 Motion, Dkt. No. 120 at 8-21. Kumar claims that, first, his counsel in the District of Rhode Island ineffectively allowed him to proffer extensively with the government without obtaining any agreement regarding the immunity protections for the use of the information he provided. Id. Next, according to Kumar, prosecutors in the District of Massachusetts thereafter vindictively delayed--until Kumar had obtained a sentence

reduction and served his entire sentence for the Rhode Island conviction--before initiating charges in this case even though the government obtained the information underlying this prosecution from Kumar during the extensive Rhode Island proffer sessions. Id.

This resulted, Kumar claims, in a sentence that was a statistical outlier, chiefly because his counsel failed to argue his criminal history category overrepresented the seriousness of his criminal history and likelihood of recidivism. Id. Specifically, Kumar had no criminal history at the time of the 2015-2019 offense at issue in this case, but, he claims, as a result of the government's election to delay prosecution until after he was convicted in Rhode Island, Kumar's criminal history score qualified him for Criminal History Category II, rather than I, based on the inclusion of points from the Rhode Island conviction. Id.

As indicated earlier, Kumar first argues that he received ineffective assistance of counsel because his attorney failed to obtain proffer protection for him in interviews with the government. Id. at 4, 14-15. While Kumar's counsel did obtain a proffer agreement with the authorities in the District of Rhode Island, he did not sign a separate agreement with authorities in the District of Massachusetts. However, even if this failure was ineffective, Kumar has not established the requisite prejudice. Proffer letters typically do not protect a person from prosecution

for making false statements as he did in his meeting with federal authorities in Massachusetts. Kumar did not provide the proffer letter to Probation in this case. See PSR at 43. Kumar has also not submitted the Rhode Island proffer letter to this court. Therefore, there is no evidence that the Rhode Island United States Attorney provided Kumar immunity from prosecution for making false statements. Nor has he shown that the Rhode Island letter was binding on the federal prosecutors in other jurisdictions, including Massachusetts. Moreover, even if counsel had obtained an agreement in the District of Massachusetts, there is no evidence that the agreement would have protected against the derivative use of Kumar's statements to further investigate him for criminal wrongdoing as the government points out. See Gov't Opp., Dkt. No. 122, at 3.

Kumar next argues that he received ineffective assistance of counsel because his attorney failed to seek time-served credit under U.S.S.G. §5G1.3(b),[4] argue for a downward departure based on overrepresentation of criminal history, and present sentencing statistics to the court that would support a lower sentence to avoid an unwarranted sentencing disparity. 2255 Motion, Dkt. No. 120, at 4, 15-18.

[4] Section 5G1.3(b)(2) was not applicable at the time of Kumar's sentencing in this case because he did not have an undischarged sentence.

Each of Kumar's arguments is contradicted by the record. Kumar's counsel vigorously argued for a reduction to a sentence of time served, including based on the time Kumar already served in connection with the Rhode Island conviction and the fact that, but for the government's election to prosecute Kumar sequentially, first in Rhode Island and then in Massachusetts, Kumar would have been in Criminal History Category I, and based on the need to avoid unwarranted sentencing disparities. See Defendant's Sentencing Memo., Dkt. No. 96, at 7-9; see also Jan. 18, 2023 Sent'g Hrg. Tr., Dkt. No. 111, at 41-45.

For example, counsel wrote in his sentencing memorandum:

> The conduct in the instant case was interrelated with the conduct in the Rhode Island case, occurred contemporaneously with and prior to the conduct forming the basis of the Rhode Island charge, and was known to the government prior to the issuance of an Information there. If it had been charged together with the other Rhode Island charges, his sentencing exposure would be notably different. * * * His criminal history category would be a I, as he had no contacts with the criminal court system prior to the Rhode Island case.

Defendant's Sentencing Memo., Dkt. No. 96, at 7. Counsel subsequently argued that: "[a]n equitable application of the sentencing guidelines would, therefore, account for the prison time Kumar has already served." Id. At the sentencing hearing, counsel also specifically asked the court to "categorize at least under fairness and equity Kumar as a Criminal History Category I."

See Jan. 18, 2023 Sent'g Hrg. Tr., Dkt. No. 111, at 43.[5]

Kumar's counsel also argued that a time-served sentence was necessary to "avoid unwarranted sentencing disparities," citing statistics indicating the prevalence of sentencing variances in this district and citing specific examples of three defendants who received "proportionate" sentences of 3 years, 2 years, and 3.5 years for similar conduct. See Defendant's Sentencing Memo., Dkt. No. 96, at 7-9; Jan. 18, 2023 Sent'g Hrg. Tr., Dkt. No. 111, at 43-44. While counsel may not have cited the statistics to which Kumar now points, counsel ardently argued that the court should sentence Kumar to a lesser term of imprisonment to avoid unwarranted sentencing disparity. Moreover, Kumar's 87-month sentence was the median sentence for defendants in Criminal History Category II who were sentenced primarily under Guideline Section 2B1.1 with a Total Offense Level of 28. See Gov't Opp. Dkt. No. 122 at 10, citing Sentencing Commission statistics at https//jsin.ussc.gov/analytics/sadr.d11?Dashboard. Accordingly, Kumar has not established that his counsel was ineffective.

The government argues that Kumar has waived his second and third claims, which, respectively, allege vindictive prosecution and preindictment delay by pleading guilty and never thereafter

[5] The court implicitly rejected these arguments in imposing a sentence within the Guidelines range as calculated by the Final PSR. See Jan. 18, 2023 Sentencing Hrg. Tr., Dkt. No. 111, at 47.

raising these issues. Opposition, Dkt. No. 122, at 11 (correctly citing United States v. Rodriguez, 311 F.3d 435, 437 (1st Cir. 2002) and Johnson v. Zerbst, 304 U.S. 458, 464 (1938), among other cases, for the proposition that a party waives a right when he knowingly relinquishes it). For the reasons in the government's Opposition, and the fact that, as discussed below, these claims are not meritorious, they are being denied.

Kumar argues that he was the subject of vindictive prosecution for "exercising his right" to file a Rule 36 motion that resulted in his earlier release on his District of Rhode Island case. 2255 Motion, Dkt. No. 120, at 5, 19. He also alleges that this issue was not previously raised due to the ineffectiveness of his attorney. Id. As noted above, Kumar has not preserved his vindictiveness claim. In any event, to establish vindictiveness, Kumar must prove that the government's charging decision was a "direct and unjustifiable penalty" that resulted "solely from the defendant's exercise of a protected legal right." United States v. Goodwin, 457 U.S. 368, 384, n.19, n.11 (1982). While Kumar's lies to government investigators led to his being investigated and prosecuted, Kumar has not provided any evidence that the government prosecutor harbored any animus toward him much less that, but for such animus, he would not have been prosecuted. Therefore, his vindictive prosecution claim is not meritorious. See United States v. Dwyer, 287 F. Supp. 2d 82, 89 (D. Mass. 2003).

Kumar's sentence in the Rhode Island case appears to have been modified only to correct a clerical error, and not as the result of Kumar's exercise of any constitutional right. That the government filed a criminal complaint earlier than originally planned in order to arrest Kumar before he was removed from the country by Immigration and Customs Enforcement is not evidence of vindictiveness. See Basil Aff., Dkt. No. 122-2, ¶¶ 6, 8. To the extent he raises a Sixth Amendment claim, Kumar has failed to establish that his counsel was ineffective in advising him to plead guilty, or that he was prejudiced in violation of the Sixth Amendment by not pursuing the vindictiveness claim that he waived by pleading guilty.

Kumar's final argument is that the government's delay in bringing the charges prejudiced him in violation of the Fifth Amendment because the delay allowed for the imposition of a higher sentence. See 2255 Motion, Dkt. No. 120, at 7, 20. Kumar also argues that this claim was not raised previously due to ineffective assistance of his attorney. Id. As noted above, Kumar has not preserved a Fifth Amendment claim, but, even assuming it was preserved, Kumar's claim lacks merit.

"Even when an indictment is brought within the statute of limitations, 'excessive pre-indictment delay can sometimes, albeit rarely, violate the Fifth Amendment's Due Process Clause if the defendant shows both that the 'delay caused substantial prejudice

to his right to a fair trial' and that 'the [g]overnment intentionally delayed indictment . . . to gain a tactical advantage.'" United States v. Irizarry-Colon, 848 F.3d 61, 70-71 (1st Cir. 2017) (quoting cases)(emphasis in original).

The First Circuit has required that a defendant "do more than allege that witnesses' memories had faded or that evidence had been lost that might have been helpful to him" to establish prejudice. Id. at 70 (citing United States v. Muñoz-Franco, 487 F.3d 25, 58 (1st Cir. 2007)). The First Circuit has required a showing of "bad faith" to establish intentional delay. Id. (citing United States v. Crooks, 766 F.2d 7, 11 (1st Cir. 1985)).

Kumar has failed to demonstrate that the delay was result of any improper motive or that the delay substantially prejudiced him. Opposition, Dkt. No. 122, at 14-17. Kumar's single proffer session with federal authorities in Massachusetts took place on February 27, 2020, on the eve of the Covid Pandemic. It was after that session that "[t]he government . . . began investigating Kumar for drug crimes, money laundering, and other crimes in Massachusetts." Gov't Opp., Dkt. No. 122, at 3. During the 15 months between when Kumar lied to law enforcement agents in Massachusetts on February 27, 2020 and, May 2021, when he was charged in this case, "the government investigated the scope of the defendant's criminal conduct and sought to identify persons who purchased controlled substances and other illegal prescription

drugs from the defendant and his co-conspirators." Opposition, Dkt. No. 122, at 14; see also Basil Aff., Dkt. No. 122-2, ¶¶ 3. The government also indicates that, as in all cases, the Covid Pandemic slowed the pace of investigation of Kumar. Opposition, Dkt. No. 122, at 14; see also Basil Aff., Dkt. No. 122-2, ¶ 5. Nevertheless, the government states that by June 2020, Kumar knew he faced likely prosecution in Massachusetts, and by September 2020, he knew the U.S. Attorney's Office was continuing to investigate but intended to charge him. Opposition, Dkt. No. 122, at 4.

Pre-indictment delay for the purpose of investigation or discovering all the participants in a conspiracy so they could be tried together is permissible, see Irizarry-Colon, 848 F.3d at 70 (citing United States v. Lovasco, 431 U.S. 783, 790-92, 795-96 (1977)). In contrast, "[d]elay in order to deprive the defendant of witnesses . . . or impose the burden of defending oneself in back-to-back trials . . . may not be." Id. at 71 (citations omitted).

Kumar has failed to demonstrate that the delay was improper. The delay that occurred was for the valid purpose of investigating Kumar's criminal conduct. The information Kumar provided in his last proffer session was the starting point for the government's investigation of him. That investigation thereafter coincided with

the Covid Pandemic, which presented unique investigative challenges for the government in all cases, not just Kumar's.

With regard to prejudice, Kumar focuses on his sentence. However, the conduct at issue in the two federal districts was distinct and this court rejected Kumar's counsel's request to discount the sentence in the Massachusetts case in light of the Rhode Island case. See Jan. 18, 2023 Sent'g Hrg. Tr., Dkt. No. 111, at 47-52. In any event, Kumar's ultimate sentence was within the range that would have applied whether he was in Criminal History Category I or II. Kumar has not established that he was prejudiced by any delay in initiating the prosecution. Kumar's failure to demonstrate prejudice is also fatal to any Sixth Amendment claim. See Strickland, 466 U.S. at 694.

Accordingly, for these reasons and as amplified in the government's submissions, Kumar's claims are being denied.

IV. CERTIFICATE OF APPEALABILITY

Pursuant to 28 U.S.C. § 2253(c)(1)(B), a defendant may not appeal a final order in a § 2255 proceeding unless the district court first issues a Certificate of Appealability ("COA") or the Court of Appeals authorizes it. This court may only issue a COA if a defendant "has made a substantial showing of the denial of a constitutional right." 28 U.S.C. § 2253(c)(2). A movant "satisfies this standard by demonstrating that jurists of reason could disagree with the district court's resolution of his

constitutional claims or that jurists could conclude the issues presented are adequate to deserve encouragement to proceed further." Miller-El v. Cockrell, 537 U.S. 322, 327 (2003). This standard presents "a low bar." Pinero v. Medeiros, 381 F. Supp. 3d 169, 171 (D. Mass. 2019). Nevertheless, a movant "seeking a COA must prove something more than the absence of frivolity or the existence of mere good faith on his or her part." Miller-El, 537 U.S. at 338 (quotation marks and citation omitted).

In view of the low bar to obtaining a COA and the unusual facts of this case, the court is issuing a COA.

V. ORDER

In view of the foregoing, it is hereby ORDERED that:

1. Kumar's 2255 Motion (Dkt. No. 120) is DENIED.

2. Kumar's Motion to Compel (Dkt. No. 124) is DENIED as MOOT.

3. Kumar's Motion to Reduce. Rule 35(b) (Dkt. No. 108) is DENIED.

4. A Certificate of Appealability of the denial of Kumar's 2255 Motion is hereby ISSUED.

UNITED STATES DISTRICT JUDGE

EXHIBIT B

District court docket report, entries ECF 133 through 142 (including ECF 133, 137, 139, 140 and 141)

		NOTICE TO COUNSEL: A Transcript Report/Order Form, which can be downloaded from the First Circuit Court of Appeals web site at http://www.ca1.uscourts.gov MUST be completed and submitted to the Court of Appeals. **Counsel shall register for a First Circuit CM/ECF Appellate Filer Account at http://pacer.psc.uscourts.gov/cmecf. Counsel shall also review the First Circuit requirements for electronic filing by visiting the CM/ECF Information section at http://www.ca1.uscourts.gov/cmecf. US District Court Clerk to deliver official record to Court of Appeals by 3/3/2026. (SEC) (Entered: 02/11/2026)**
02/11/2026	133	Notice of Reassignment as to Manish Kumar. District Judge Angel Kelley added. Judge Mark L. Wolf no longer assigned to case. (CS) (Entered: 02/11/2026)
03/10/2026	134	Certified and Transmitted Abbreviated Electronic Record on Appeal as to Manish Kumar to US Court of Appeals re 132 Notice of Appeal. (MAP) (Entered: 03/10/2026)
03/13/2026	135	USCA Case Number as to Manish Kumar 26-1250 2255 Appeal for 132 Notice of Appeal filed by Manish Kumar. (MAP) (Entered: 03/13/2026)
03/13/2026	136	USCA Case Number as to Manish Kumar 26-1251 Criminal Appeal for 132 Notice of Appeal filed by Manish Kumar. (MAP) (Entered: 03/13/2026)
04/17/2026	137	District Judge Angel Kelley: ELECTRONIC ORDER entered. Before this Court is pro se Defendant Manish Kumars Motion to Reopen Time to File an Appeal. [Dkt. 131]. The Motion seeks to reopen the time to file appeal against this Courts Order entered on August 28, 2025 [Dkt. 130] which denied Mr. Kumars Motion to Vacate under 28 U.S.C. § 2255 [Dkt. 120]. Mr. Kumar is confined in FCI Fort Dix, New Jersey and claims that he did not receive the notice of entry of Order [Dkt. 130]. Mr. Kumar states that the Order was not delivered to him by the prison mailroom or the Clerk of Court. [Dkt. 131-1, 5]. Mr. Kumar has also concurrently filed the Notice of Appeal with the U.S. Court of Appeals for the First Circuit. [Dkt. 132]. Pursuant to 28 U.S.C. § 2107(c) and Federal Rule of Appellate Procedure 4(a)(6), the Court may reopen the time to appeal for a period of 14 days only if the Court finds: (a) the party did not receive the notice of entry of the order or judgment within 21 days of its entry, (b) no party would be prejudiced by reopening, and (c) the party filed motion for reopening within 180 days after entry of order or within 14 days after receipt of such notice, whichever is earlier. First, Mr. Kumar adequately claims that he did not receive notice of entry of the Order within 21 days of its entry. Mr. Kumar is a pro se litigant and is imprisoned. He was dependent on third-party sources, including prison mailroom staff, to learn about the Order. He learned about the Order on January 27, 2026, and mailed out the Motion the same day along with his Declaration and the service to the government. [Dkt. 131-1, 5-6]. Pertinently, Mr. Kumar wrote three letters inquiring about the status of his

		Motion prior to the August 28, 2025 Order. [Dkt. 127-129]. The docket also does not indicate if the Order was mailed to Mr. Kumar at the prison facility where he is imprisoned. These facts cumulatively provide sufficient evidence that Mr. Kumar did not receive notice of the Order. Second, no party will be prejudiced by the extension of time. Mr. Kumar notified the government about this Motion on January 27, 2026, the day when he claims to have learned about the Order. The government did not oppose the Motion or contest the Declaration. Given the timely service to the government and absence of governments opposition, the Court finds that no party will be prejudiced by grant of Mr. Kumars Motion. Lastly, Mr. Kumar timely moved this Court to reopen the time for appeal. The Defendant's Motion is dated January 27, 2026, and was docketed on February 11, 2026. [Dkt. 131]. Both dates are before February 24, 2026, that is, within 180 days from August 28, 2025, the date on which this Court entered the Order denying Mr. Kumars Motion to Vacate under 28 U.S.C. § 2255. Mr. Kumars Motion to Reopen is also within 14 days from January 27, 2026, the date on which he learned about the Order and mailed the Motion. Mr. Kumar thus meets all the requirements under 28 U.S.C. § 2107(c) and Rule 4(a)(6) for reopening of the time to appeal. Additionally, the Court notes that Mr. Kumar has filed a Notice of Appeal with the U.S. Court of Appeals for the First Circuit. [Dkt. 132]. The Notice, if otherwise adequate, will relate forward to the date of this Order, making a second notice unnecessary. See Parrish v. United States, 605 U.S. 376, 379. This means Mr. Kumar may not need to file an additional notice of appeal after the Court reopens the time to appeal. For the reasons stated above, the Court **GRANTS** Mr. Kumars 131 Motion, and reopens the time for appeal for a period of **14 days** from the date of this Order. (MS) (Entered: 04/17/2026)
04/17/2026	138	Filed in Error (SP). (Entered: 04/17/2026)
05/01/2026	139	Mail sent to Manish Kumar Returned as Undeliverable. (JAM) (Entered: 05/04/2026)
06/08/2026	140	ORDER of USCA (certified copy) as to Manish Kumar re 132 Notice of Appeal (CEH) (Entered: 06/08/2026)
06/25/2026	141	District Judge Angel Kelley: ELECTRONIC ORDER entered as to Manish Kumar. Before the Court is an Order from the U.S. Court of Appeals for the First Circuit to issue a new Certificate of Appealability. [Dkt. 140]. On August 28, 2025, another session of this court denied Defendant's Motion to Vacate Sentence pursuant to 28 U.S.C. § 2255. [Dkt. 130]. The action was reassigned to this Court on February 11, 2026. [Dkt. 133]. The same day, Defendant appealed the denial of his Motion to Vacate to the First Circuit. [Dkt. 132]. On June 8, 2026, the First Circuit noted that the prior court's order did not

"identify which issue or issues satisfy the standard set forth in 28 U.S.C. § 2253(c)(2)," and thus directed this Court to re-certify the appeal.

A court may issue a Certificate of Appealability "only if the applicant has made a substantial showing of the denial of a constitutional right." 28 U.S.C. § 2253(c)(2). To make a "substantial showing," the movant must demonstrate that reasonable jurists "could disagree with the district court's resolution of his constitutional claims or that jurists could conclude the issues presented are adequate to deserve encouragement to proceed further." Miller-El v. Cockrell, 537 U.S. 322, 327 (2003). This standard presents a "low bar." Pinero v. Medeiros, 381 F. Supp. 3d 169, 171 (D. Mass. 2019). A claim can be debatable "even though every jurist of reason might agree, after the [certificate of appealability] has been granted and the case has received full consideration, that petitioner will not prevail." Miller-El, 537 U.S. at 338. Nevertheless, the movant must "prove something more than the absence of frivolity or the existence of mere good faith on his or her part." Id. (internal quotation marks omitted). When a movant asserts more than one ground for relief, the Certificate of Appealability must state which issues, if any, satisfy the Section 2253 standard. See 28 U.S.C. § 2253(c)(3).

In his Motion to Vacate, Defendant challenges his conviction on the following grounds: (1) ineffective assistance of counsel due to counsel's failure to obtain proffer protection prior to interviews with the government; (2) ineffective assistance of counsel due to counsel's failure to make various arguments in support of a lower sentence, (3) vindictive prosecution, and (4) preindictment delay in violation of the Fifth Amendment. The prior court rejected all these arguments but nevertheless issued a Certificate of Appealability, noting "the low bar to obtaining a [Certificate of Appealability] and the unusual facts of this case." [Dkt. 130 at 22]. The prior court did not specify which grounds for appeal were certified, which this Court now addresses.

First, Defendant claims that his trial counsel rendered ineffective assistance by failing to obtain an immunity agreement to protect proffers with the government. The prior court found that Defendant failed to make a showing of prejudice based on a finding that proffer letters "typically do not protect a person from prosecution for making false statements." [Id. at 13-14]. Reasonable jurists could disagree with this finding, as well as with whether counsel's failure to obtain an immunity agreement caused Defendant to suffer prejudice. Accordingly, the Court will issue a Certificate of Appealability as to this ground.

Second, Defendant contends that he received ineffective assistance of counsel because his attorney failed to seek time-served credit under the sentencing guidelines, argue for a downward departure based on overrepresentation of criminal history, and present sentencing statistics supporting a lower sentence. The prior court, however, explained that Defendant's arguments are clearly contradicted by the record, quoting detailed arguments made by counsel as to these precise issues. [Seeid. at 14-16]. On the Court's review, the record is not reasonably contestable and

		thus declines to issue a Certificate of Appealability with respect to this ground. Third, Defendant claims that he was the subject of vindictive prosecution. According to Defendant, the government delayed his prosecution until he completed a separate criminal sentence in the District of Rhode Island. In this manner, the government allegedly precluded him from serving his sentences concurrently. The prior court rejected this argument, explaining that Defendant provided no evidence that the prosecutor harbored any animus toward him. [Id. at 17]. This Court agrees that First Circuit precedent is clear that at least some circumstantial or direct evidence of vindictiveness is necessary for a vindictive prosecution claim to survive. United States v. Marrapese, 826 F.2d 145, 147 (1st Cir. 1987). Because Defendant does not provide any such evidence, reasonable jurists could not disagree as to this ground, and the Court declines to certify this issue for appeal. Finally, Defendant argues that the government intentionally delayed his indictment until his Rhode Island sentence was issued, leading to the imposition of a higher criminal history category in this District. In rejecting this ground, the prior court attributed the delay, at least to some extent, to the fact that the investigation "coincided with the Covid Pandemic, which presented unique investigative challenges for the government in all cases, not just [Defendant]'s." [Dkt. 130 at 20-21]. Reasonable jurists could disagree with this conclusion about the effect of the COVID-19 pandemic and its effects on prosecutorial delay. Accordingly, the Court will issue a Certificate of Appealability as to this ground. In sum, the Court hereby **ISSUES** a Certificate of Appealability with respect to Defendant's claims regarding (1) ineffective assistance of counsel due to failure to obtain proffer protection (2) preindictment delay in violation of the Fifth Amendment. (CEH) (Entered: 06/25/2026)
06/25/2026	142	Transmitted Supplemental Record on Appeal as to Manish Kumar re 132 Notice of Appeal. Documents included: 141 (CEH) (Entered: 06/25/2026)

[PACER transaction receipt omitted]

EXHIBIT C

ECF 122 — Government's Opposition to § 2255 Motion, with ECF 122-1 (Rhode Island proffer letter) and ECF 122-2 (Basil affidavit)

UNITED STATES DISTRICT COURT
DISTRICT OF MASSACHUSETTS

UNITED STATES OF AMERICA v. MANISH KUMAR, Defendant	No. 21-cr-10157-MLW

GOVERNMENT'S OPPOSITION TO DEFENDANT'S MOTION UNDER 28 U.S.C. § 2255, AND IN THE ALTERATIVE, MOTION FOR AN ORDER REGARDING WAIVER OF ATTORNEY-CLIENT PRIVILEGE

On October 24, 2024, Manish Kumar filed a *pro se* motion under 28 U.S.C. § 2255 (ECF 120) seeking relief on three grounds, all of which implicate ineffective assistance of counsel:

1. Ineffective assistance of counsel for purportedly failing (a) to obtain proffer protection for him in interviews; (b) to seek time-served credit under USSG § 5G1.3(b); (c) to argue for a downward departure based on overrepresentation of criminal history; and (d) to present sentencing statistics to the Court, apparently regarding an unwarranted disparity;

2. Vindictive prosecution, which Kumar says he did not raised on direct appeal due to ineffective assistance of counsel by appellate counsel; and

3. Prejudicial pre-indictment delay, which Kumar says appellate counsel improperly failed to address in his direct appeal.

The Court should deny the defendant's motion in its entirety for the following reasons, without holding an evidentiary hearing.

As to Ground One, *first*, regarding his statements to law enforcement and the supposed lack of proffer protection, Kumar waived this issue, which sounds in suppression, by pleading guilty unconditionally. *See Class v. United States*, 583 U.S. 174, 182 (2018). Even if he had not waived, he cannot show prejudice because, in fact, he had a proffer agreement in the District of Rhode Island, and although he did not have one in the District of Massachusetts, the lack was immaterial because a proffer agreement would not have protected against false statements or the

derivative use of statements. *Second*, as to USSG § 5G1.3(b), Kumar's argument fails because that guideline only applies to undischarged terms of imprisonment, Kumar's prior term was discharged, and defense counsel in fact asked the Court for a downward variance based on time-served. *See* Def.'s Sent. Mem. at 7 (ECF 96). *Third*, as to criminal history, defense counsel explicitly argued that the guideline calculation in this case overstated Kumar's criminal history. *Id*. And, *fourth*, defense counsel presented sentencing statistics to the Court to argue for a downward variance. *Id*. at 8-9.

As to Grounds Two and Three, Kumar knowingly and intelligently waived the issues of vindictive prosecution and pre-indictment delay by filing a motion to dismiss (ECF 58) based on these specific issues and then withdrawing the motion. *See United States v. Concepcion-Guliam*, 62 F.4th 26, 31 (1st Cir.) (2023) ("A party who identifies an issue, and then explicitly withdraws it, has waived that issue."). And even if these issues were not waived, Kumar has not alleged sufficient facts to support either claim for relief and cannot do so, because the existing record contradicts his conclusory and speculative claims.

RELEVANT BACKGROUND

In August 2019, Kumar was charged by complaint in the District of Rhode Island with wire fraud, wire fraud conspiracy, and aggravated identity theft, but no drug crimes. *See United States v. Kumar*, No. 20-cr-00089 (D.R.I.), RI-ECF 3 and 4.[1] After arrest on the Rhode Island charges, on advice of counsel, Kumar cooperated with a separate investigation in Massachusetts in hopes of getting more a lenient sentence based on substantial assistance. Def.'s Mot. to Dismiss ("MTD") at 1 (ECF 58). Kumar had a proffer agreement in the District of Rhode Island. *Id.*; *see*

[1] Rhode Island docket items are referenced by their Rhode Island ECF number ("RI-ECF").

also PSR at 42 (Def.'s Obj. 2).[2] He did not have a proffer agreement with the District of Massachusetts. *See* Rule 11 Hr'g Tr. (ECF 91) at 6-7.

Thereafter, Kumar met with federal agents in Boston regarding computer technical support fraud and related money laundering. MTD at 1. On February 27, 2020, Kumar, with counsel, met with law enforcement and the undersigned government attorney in Boston to vet him as a cooperating witness. PSR ¶ 40. In the course of that meeting, Kumar made false statements about distributing controlled substances. *See* Indictment ¶¶ 19-20 (ECF No. 8); PSR ¶ 40. Kumar then stopped cooperating with the Massachusetts investigation. The government then began investigating Kumar for drug crimes, money laundering, and other crimes in Massachusetts.

In March 2020, the COVID 19 pandemic spread across the United States, and it delayed, slowed, and limited Court proceedings, commercial business, and law enforcement activity nationally and in the District of Massachusetts. For example, on March 12, 2020, the District Court issued General Order 20-1, restricting access to the courthouse. On March 13, 2020, the District Court issued General Order 20-3, continuing grand jury proceedings and allowing the United States Attorney to schedule grand jury time only for emergency or essential matters. Thereafter, the District Court issued a series of additional limitations on grand jury proceedings, including General Orders 20-14, 20-22, and 20-28, each of which continued grand jury proceedings and allowed the U.S. Attorney's Office to schedule grand jury time only for emergency or essential matters. Response times to grand jury subpoenas had to be extended, and interviewing witnesses became more difficult. The U.S. Attorney's Office ordered prosecutors to work from home in the early stages of the pandemic. Schools closed.

[2] The government cannot locate a signed copy of the proffer letter, but the defendant has admitted its existence.

By June 2020, Kumar knew he faced likely prosecution in Massachusetts. *See* MTD Exhibits (ECF 58-1) at 7 (Attorney K. Barrett to AUSA M. Shah, June 11, 2020, "I did speak with [AUSA] Kriss [Basil] and we thought it best that Kriss speaks to Mr. Kumar (with me present) regarding the culpability he has for the MA investigation."). By September 2020, Kumar knew that the U.S. Attorney's Office in Massachusetts intended to charge him, although it was still investigating. *See* MTD Exhibits at 1 (Attorney K. Barrett to AUSA M. Shah (Sept. 27, 2020), "I also spoke with [AUSA] Kriss Basil yesterday . . . . I am presenting this to Mr. Kumar on Monday. I am also going to relay what Kriss has/had to say about potential charges.").

On October 21, 2020, in Rhode Island, the U.S. Attorney charged Kumar by Information with one count of conspiracy to commit wire fraud (18 U.S.C. § 1349), four counts of wire fraud (18 U.S.C. §§ 1342, 1349), and two counts of aggravated identity theft (18 U.S.C. § 1028A). (RI-ECF 14.) Kumar waived indictment and noticed an intent to plead guilty. (RI-ECF 16, 17). On November 5, 2020, Kumar pleaded guilty on all counts, without a plea agreement and unconditionally. (RI-ECF Entry, Nov. 5, 2021).

At his Rule 11 hearing, Kumar admitted the facts summarized by the prosecutor, which did not concern the illegal distribution of drugs. *See* RI Rule 11 Hr'g Tr. (RI-ECF 22) at 27. In substance, Kumar admitted that, from March 8, 2019 to August 25, 2019, he defrauded victims through a scheme involving fraudulent computer technical support and a separate scheme involving credit card fraud. In the credit card scheme, the defendant sold credit card information from customers of his Indian pharmaceutical business to other criminals, who fraudulently charged the victims' credit cards. *Id.* at 17-27. Notably, he admitted was that his credit card fraud and his pharmaceutical business were not closely connected. As recounted by the prosecutor, "[A co-conspirator] asked whether there was any risk of the credit cardholders connecting the recent

charges to [] Kumar's pharmaceutical business, and [] Kumar responded that he was not concerned because the pharmaceutical charges had occurred about a year ago." *Id*. at 26-27.

On February 12, 2021, the Rhode Island District Court sentenced Kumar to 24 months of incarceration, which was the applicable mandatory minimum, and one year of supervised release. (RI-ECF 31.) Clerical error in the initial judgment, which specified a sentence of more than 24 months, was corrected after Kumar wrote to the Court at the end of March 2021. (RI-ECF Entry, Mar. 31, 2021; RI-ECF 30, 31). Kumar was released from Bureau of Prisons' custody on May 7, 2021, and Kumar did not appeal his conviction in Rhode Island.

On May 12, 2021, Kumar was charged by complaint in the District of Massachusetts. (ECF 4, 5.) A day later, he was arrested in ICE custody. (ECF 13, 14.) On May 17, 2021, the grand jury indicted Kumar for conspiracy to smuggle misbranded drugs and controlled substances into the United States, conspiracy to distribute controlled substances, and false statement. (ECF 4, 8.)

Before this Court, Kumar's first lawyer was Jeff Palmer. Kumar requested new counsel on November 4, 2021, because, he explained, Attorney Palmer would not file a motion to dismiss. The government does not know the subject matter of the motion. The Court then appointed Attorney Gordon Spencer, who then withdrew on February 1, 2022. According to a letter filed by Kumar, Attorney Spencer also refused to file a "speculative" motion. (ECF 48.) The government does not know the substance of the "speculative motion." The Magistrate Court allowed Kumar to proceed *pro se* and appointed Henry Fasoldt as standby counsel.

On February 28, 2022, Kumar filed *pro se* a motion to dismiss the indictment based on double jeopardy, vindictive prosecution, and pre-indictment delay. (ECF 58.)

On March 8, 2022, the United States moved for a *Faretta* hearing because Kumar's MTD included incriminating statements and waived attorney-client privilege on certain

communications. (ECF 61.) And on March 14, 2022, the government opposed Kumar's MTD. (ECF 64.)

On March 15, 2022, the Magistrate Court held a *Faretta* hearing. At the hearing, the undersigned counsel argued vigorously for Kumar to have counsel and not to risk a trial *pro se*:

> If he's saying that his prior counsel let him down, did not provide him with the representation that he thinks he's entitled to -- he is, in fact, entitled to that representation if he's asking for it. It sounded to me like he was just saying he wished he could have good counsel appointed to help him. Mr. Fasoldt is well-known and skilled counsel. . . . Mr. Kumar needs help with this case, your Honor. He should not go to trial without having reviewed discovery and understanding the law that stands against him. He has just said that he would prefer to have counsel that would actually work on his behalf in a legal manner. That to me, your Honor, does not sound like he wants to go forward pro se.

Faretta Hr'g Tr. (ECF 93) at 20-21. At the end of the hearing, Kumar agreed to continue with counsel. Kumar then said, "Also I want to thank you to Kriss [Basil] to advise me of all these things. Thank you, sir." The Magistrate Court responded, "Actually, it's pretty remarkable that he's done this." (*Id*. at 28-29.)

On April 26, 2022, the Court ordered Kumar to decide whether he wished to maintain the motion to dismiss and have Attorney Fasoldt file a supplemental brief. (ECF 72.) On May 6, 2022, Kumar, through counsel, responded that he wanted to maintain his motion to dismiss and to have Attorney Fasoldt file a supplemental memorandum. On May 12, 2022, Attorney Fasoldt filed the supplemental motion, maintaining Kumar's *pro se* arguments and adding a claim for improper successive prosecution. (ECF 75.)

On September 2, 2022, Kumar, through counsel, withdrew his motion to dismiss and asked for a Rule 11 hearing, but on September 30, 2022, Kumar sent a letter to the Court explaining explicitly that he wanted to withdraw his motion to dismiss and to plead guilty because he believed that his guideline sentencing range was only 15-20 months. (ECF 83.)

On October 6, 2022, Kumar pleaded guilty, unconditionally and without a plea agreement. (ECF 86.) On January 18, 2023, this Court sentenced Kumar to 87 months of imprisonment, 36 months of supervised release, and a $100,000 fine. (ECF 102.) Kumar appealed, challenging whether this Court properly applied the fraud guideline and whether the Court correctly determined the amount of loss, and on August 12, 2024, the First Circuit denied the appeal. (ECF 117, 118.)

LEGAL STANDARD

Under 28 U.S.C. § 2255, a prisoner in custody "claiming the right to be released" may file a motion to vacate, set aside, or correct a sentence. The relief requested may be granted if the sentence (1) was imposed in violation of the Constitution; (2) was imposed by a court that lacked jurisdiction; (3) exceeded the statutory maximum; or (4) was otherwise subject to collateral attack. *Damon v. United States*, 732 F.3d 1, 3 (1st Cir. 2013). A defendant bears the burden of establishing by a preponderance that he is entitled to relief under section 2255. *Wilder v. United States*, 806 F.3d 653, 658 (1st Cir. 2015).

To prevail on his ineffective assistance of counsel claims, Kumar must show, first, that his counsel's performance was constitutionally deficient; and second, that prejudice resulted. *Miller v. United States*, 77 F.4th 1, 5-6 (1st Cir. 2023) (citations omitted). "A defendant can demonstrate constitutionally deficient performance only if he can show that — given what counsel knew or should have known at the time — 'counsel's choice was so patently unreasonable that no competent attorney would have made it.'" *Id*. at 6 (*quoting Flores-Rivera v. United States*, 16 F.4th 963, 969 (1st Cir. 2021)). To prove prejudice, Kumar "must show that there is a reasonable probability that, but for counsel's unprofessional errors, the result of the proceeding would have been different." *Strickland v. Washington*, 466 U.S. 668, 694 (1984).

In deciding whether the defendant meets this burden, a court generally must take his factual statements as true, but need not credit "conclusory allegations, self-interested characterizations,

discredited inventions, or opprobrious epithets." *United States v. McGill*, 11 F.3d 223, 225 (1st Cir. 1993). A court may "employ the knowledge gleaned during previous proceedings and make findings based thereon without convening an additional hearing." *Id*. "Evidentiary hearings on § 2255 petitions are the exception, not the norm, and there is a heavy burden on the petitioner to demonstrate that an evidentiary hearing is warranted." *Moreno-Morales v. United States*, 334 F.3d 140, 145 (1st Cir. 2003) (citing *McGill*, 11 F.3d at 225). No hearing is necessary if the motion (1) is inadequate on its face, or (2) although facially adequate is conclusively refuted as to the alleged facts by the records of the case. *McGill*, 11 F.3d at 225-26.

ARGUMENT

I. Kumar Cannot Establish Ineffective Assistance of Counsel.

As his first ground for relief, Kumar makes four claims, all of which he characterizes as implicating ineffective assistance of counsel.

First, Kumar says that his counsel failed to secure proffer protections for him. This is misleading. Kumar had a proffer agreement in Rhode Island. *See* PSR at 42. As is standard, the proffer agreement did not offer any protection for false statements or derivative use. *See* Unsigned Kumar Proffer Letter, Exhibit A. Kumar did not have a proffer agreement in Massachusetts, but that is immaterial because a Massachusetts proffer letter also would not have protected Kumar from prosecution for false statements or from derivative use of his statements to obtain evidence. Kumar's counsel's approach to his purported cooperation both with and without proffer protection was thoroughly reasonable. Indeed, advice (assuming it was given) for Kumar to be forthcoming would be sound in the context of cooperation. Obviously, the point of meeting with the government was for Kumar to provide truthful information, not to use the proffer to obstruct an investigation into the scope of his drug-dealing. Kumar can hardly blame his attorneys for his

decision to lie. Indeed, even an immunity letter would not have protected Kumar against prosecution for his false statements.

In any event, Kumar's claim regarding his proffer statements sounds in suppression, and by pleading guilty unconditionally, Kumar waived any ground for relief based on his proffer statements. "It is well-established that an unconditional guilty plea results in the waiver of errors preceding the plea." *United States v. Castro-Vazquez*, 802 F.3d 28, 32-33 (1st Cir. 2015) (*citing Tollett*, 411 U.S. at 267); *see also United States v. Cordero*, 42 F.3d 697, 699 (1st Cir. 1994) (holding that defendant waived suppression issue by pleading guilty).

Second, Kumar says that counsel erred in not seeking credit for time-served at sentencing under USSG § 5G1.3(b). The claim is frivolous. That guideline only concerns "undischarged" terms of imprisonment. Kumar's sentence from the Rhode Island case was discharged. Moreover, Attorney Fasoldt asked the Court to consider Kumar's time served in his sentencing memorandum, and asked for downward variance. *See* Def.'s Sent. Mem. at 7 ("An equitable application of the sentencing guidelines would, therefore, account for the prison time Mr. Kumar has already served."). Mr. Fasoldt cannot be faulted for correctly understanding the inapplicability of the guideline and nevertheless arguing for variance on equitable grounds. The record refutes Kumar.

Third, Kumar says that Mr. Fasoldt's performance was deficient because he did not argue for a downward departure based on an overrepresentation of Kumar's criminal history. Again, the record refutes Kumar. Mr. Fasoldt did just that. *See* Def.'s Sent. Mem. at 7; *see also* Sent. Hr'g Tr. at 43 ("We're asking the court to . . . categorize at least under fairness and equity Mr. Kumar as a Criminal History Category I."). Counsel did exactly what Kumar falsely says he did not do, and Mr. Fasoldt's performance was clearly reasonable.

Fourth, Kumar says that Mr. Fasoldt failed to present compelling statistics to the Court regarding unwarranted disparities. Again, counsel did exactly that. *See* Def.'s Sent. Mem. at 8-9. It is true that counsel did not present guideline specific statistics for the District of Massachusetts, but that is immaterial. Counsel made the general point that Kumar says he skipped, *i.e.*, sentences in Massachusetts are often below guidelines.

But counsel could not have argued that his sentence represents an unwarranted disparity because, Kumar says, nationally the median and average sentences for similarly situated defendants were 18 and 28 months respectively. (Mot. at 17.) His statistics are wrong. USSG statistics for defendants in Criminal History Category II, sentenced with USSG § 2B1.1 as the primary guideline, at offense level 28 had median and average imprisonment of 87 and 79 months respectively.[3] Kumar says that his sentence was "well-outside the heartland of typical cases." Mot. at 17. Not so. The sentence imposed by this Court was at the very heart of the heartland for similarly situated defendants sentenced under USSG § 2B1.1—literally at the median.

Mr. Fasoldt cannot be faulted for not making a factually false argument or for not referencing national sentencing data that weighed against his time-served argument to this Court. Indeed, as this Court had the opportunity to see directly, Mr. Fasoldt's representation, far from being deficient, was proficient and effective, and no prejudice resulted.

II. Kumar Waived Claims of Vindictive Prosecution and Pre-Indictment Delay.

Kumar claims relief based on purported vindictive prosecution (Ground Two) and unconstitutional pre-indictment delay (Ground Three). Mot. at 5, 7. He raised neither claim on direct appeal, a default he says resulted from the deficient performance of his appellate counsel.

[3] https://jsin.ussc.gov/analytics/saw.dll?Dashboard

Id. at 6, 7. The government does not know what advice appellate counsel gave Kumar on these issues, but as explained below, Kumar cannot state a claim for relief because he waived both issues.

The defendant appears to have fired two lawyers because they would not file a motion he wanted. After he fired the second, he filed an MTD (ECF 58) that advanced the vindictive prosecution and pre-indictment delay claims he now alleges as Grounds Two and Three of his 2255 motion. Kumar withdrew that pending MTD to plead guilty unconditionally.[4] By withdrawing his MTD, Kumar knowingly waived the issues. *See United States v. Rodriguez*, 311 F.3d 435, 437 (1st Cir. 2002) ("A party waives a right when he intentionally relinquishes or abandons it." *citing Johnson v. Zerbst*, 304 U.S. 458, 464 (1938)); *United States v. Carrasco-De-Jesús*, 589 F.3d 22, 26 (1st Cir. 2009) (defining waiver as "intentional relinquishment of a known right"); *see also United States v. Orsini*, 907 F.3d 115, 120 (1st Cir. 2018) (holding that "exchange" between the prosecutor and defense counsel made "evident that the appellant intentionally relinquished" claim); *United States v. Eisom*, 585 F.3d 552, 556 (1st Cir. 2009) (finding waiver when appellant withdrew objection previously raised)). Appellate counsel's decision not to include either issue in Kumar's direct appeal was wholly reasonable given Kumar's waiver of both, and as explained below, Kumar could not possibly have prevailed on either claim regardless.

III. Kumar's Waived Vindictive Prosecution Claim Is Frivolous.

As with Kumar's other claims, the record refutes his allegations of vindictive prosecution. To prove prosecutorial vindictiveness, Kumar must show either that the undersigned counsel acted from actual animus against him or that circumstances "reveal a sufficient likelihood of

[4] Kumar cannot plausibly that Mr. Fasoldt's guideline calculation was deficient. Counsel's challenge to the government's guideline calculation was thorough in his objections to the PSR, in his sentencing memorandum, and at the sentencing hearing itself. See PSR at 44-45 (Objs. 6 & 7), Def.'s Sent. Mem. (ECF 96) at 3-4; Def.'s Resp. t Gov't's Sent. Mem. (ECF 100) at 1-3; Sent. Hr'g Tr. at 15-17 (arguing against application of USSG § 2B1.1), 21-22 (same).

vindictiveness to warrant a presumption of vindictiveness." *United States v. Jenkins*, 537 F.3d 1, 3 (1st Cir. 2008) (citing *United States v. Marrapese*, 826 F.2d 145, 147 (1st Cir. 1987)).

To establish actual vindictiveness, a Kumar must prove directly and objectively that the undersigned counsel's charging decision was a "direct and unjustifiable penalty" that resulted "solely from the defendant's exercise of a protected legal right." *United States v. Goodwin*, 457 U.S. 368, 384, n.19, n.11 (1982). This showing requires "direct evidence," not circumstantial evidence. *United States v. Dwyer*, 287 F. Supp. 2d 82, 89 (D. Mass. 2003) (citing *United States v. Johnson*, 171 F.3d 139, 140 (2nd Cir. 1999)). Kumar must provide direct evidence that either "(1) the prosecutor harbored genuine animus toward the defendant, or was prevailed upon to bring the charges by another with animus such that the prosecutor could be considered a 'stalking horse,' and (2) [the defendant] would not have been prosecuted except for that animus." *Id.*

Kumar obviously cannot make this showing and has not even really tried. First, Kumar knew in 2020 that the District of Massachusetts was investigating possible criminal charges against him. His exhibits to his withdrawn motion prove it. *See* MTD Exhibits at 1 and 7. The record shows that the charging decision was not a reaction to anything Kumar did, other than lie to investigators and sell drugs illegally. There is no evidence that the undersigned counsel had any animus toward Kumar, nor has he alleged any. In fact, as the *Faretta* hearing showed—and as Kumar recognized—the undersigned counsel tried to protect his rights. Second, there is no evidence that the Rhode Island prosecutor harbored any ill-will toward Kumar, directed the Massachusetts prosecution, or asked the undersigned counsel to do anything after Kumar sent his letter to correct his sentence. There is no evidence that the District of Rhode Island was involved in any charging decisions in the District of Massachusetts. *See* Basil Aff., generally, attached as Exhibit B.

Kumar also cannot establish a presumption of prosecutorial vindictiveness, because he cannot show a "realistic likelihood" of vindictiveness that would be applicable in all cases with similar circumstances. *Blackledge v. Perry*, 417 U.S. 21, 27 (1974). The Supreme Court has rejected the presumption of vindictiveness when, pretrial, a prosecutor threatens to charge a defendant unless he pleads guilty and then carries out that threat when the defendant refuses to plead guilty. *See Bordenkircher v. Hayes*, 434 U.S. 357, 365 (1977). Similarly, a prosecutor can threaten enhanced charges to induce cooperation and carry out that threat if the defendant declines to cooperate. *See United States v. Kent*, 633 F.3d 920, 928 (9th Cir. 2011). Moreover, the Supreme Court has explained that it is "unrealistic" to assume vindictiveness because a prosecutor brings new charges after a defendant files routine motions to dismiss, to suppress, to obtain discovery, or to "challenge the sufficiency and form of an indictment." *Goodwin*, 457 U.S. at 381. And if a defendant successfully establishes a presumption of vindictiveness, the showing required to overcome it is "minimal—any objective evidence justifying the prosecutor's actions will suffice." *United States v. Safavian*, 649 F.3d 688, 694 (D.C. Cir. 2011).

There can be no presumption of vindictiveness here. The defendant corrected a clerical error in a sentence in a different case in a different state that had no effect on his Massachusetts prosecution. The defendant's filing was routine and ministerial. The defendant has alleged nothing that would show that the charges against the defendant in Massachusetts resulted from anything other than his false statements to federal agents in Massachusetts in February 2020 and the government's subsequent investigation of Kumar's drug smuggling operation.

IV. Kumar's Waived Pre-Indictment Delay Claim Is Also Frivolous.

Kumar's waived claim of unconstitutional pre-indictment delay is closely intertwined with his waived vindictive prosecution claim and also has no merit.

To prevail, Kumar must show that "'delay caused substantial prejudice to his right to a fair trial' and that 'the [g]overnment intentionally delayed indictment . . . to gain a tactical advantage.'" *United States v. Bater*, 594 F.3d 51, 54 (1st Cir. 2010) (quoting *United States v. Picciandra*, 788 F.2d 39, 42 (1st Cir. 1986)); *Ruiz v. United States*, 221 F. Supp. 2d 66, 87 (D. Mass. 2002) (Wolf, D.J.) (same). With respect to intentional delay, only *bad faith* delay counts. *United States v. Crooks*, 766 F.2d 7, 11 (1st Cir. 1985). The First Circuit has recognized that "pre-indictment delay for the purpose of investigation, for the purpose of discovering all the participants in a conspiracy so they could be tried together, and for the purpose of letting state authorities pursue their own prosecution is permissible. *United States v. Irizarry-Colón*, 848 F.3d 61, 70-71 (1st Cir. 2017) (citing *United States v. Lovasco*, 431 U.S. 783, 790-92 (1977) and *United States v. Marler*, 756 F.2d 206, 214-15 (1st Cir. 1985)).

Kumar says that the government delayed despite having "complete knowledge" of all of his conduct while his case in Rhode Island was pending and that the government delayed charging him solely to maximize his punishment. (Mot. at 19.) Neither allegation has merit.

The government charged the defendant about 15 months after the defendant lied to law enforcement agents in Massachusetts on February 27, 2020.[5] In the 15 months between the defendant's false statements and May 2021, the government investigated the scope of the defendant's criminal conduct and sought to identify persons who purchased controlled substances and other illegal prescription drugs from the defendant and his co-conspirators. *See* Basil Aff. The First Circuit has held that delays in indicting for such reasons do not indicate bad faith. *See*

[5] Before that point, the government was not investigating the defendant for drug crimes. He was a cooperating witness. Once he lied, investigators began developing the drug prosecution of the defendant. Kumar's suggestion that the government had "complete knowledge" of his conduct is absurd. He argued before this Court and on appeal that the government's knowledge of the drugs he sold, the amounts he sold them for, and the amounts he sold were *incomplete*.

Irizarry-Colón, 848 F.3d at 70-71. Moreover, the investigation took place during and was slowed by the outbreak of the COVID-19 pandemic and the resulting shutdown of many businesses. As noted above, the District Court also scaled back activity. Slowdowns in the investigation due to the pandemic were unavoidable and beyond the government's control. The government did not intend to slow down its investigation. There was a national emergency.

Kumar points to no evidence that the government delayed indictment to deprive the defendant of witnesses or that the government sought to impose the burden of back-to-back trials. Kumar does not point to any improper tactical advantage for trial that the government gained, or possibly could have gained, by intentionally delaying his indictment. No witnesses became unavailable, who would not otherwise have been unavailable. No evidence disappeared. In fact, however, the government was gathering evidence, locating witnesses, and identifying and charging co-conspirators. The government's actions in this case were in good faith and for good purpose. As the Supreme Court explained long ago, "to prosecute a defendant following investigative delay does not deprive him of due process, even if his defense might have been somewhat prejudiced by the lapse of time." *United States v. Lovasco*, 431 U.S. 783, 795-96 (1977) (citation omitted).

Even if the defendant could show some kind of improper motive—and there was none—he cannot show any prejudice that resulted. Nevertheless, Kumar says there are three kinds of prejudice: first, that his criminal history category was higher; second, that he was ineligible for a zero-point offender reduction under USSG 4C1.1; and third, that he could not have his sentences run concurrently. The defendant is wrong about each.

First, although the defendant's criminal category history was higher, no prejudice resulted. This Court sentenced the defendant to 87 months of incarceration, which is a mid-guidelines sentence for a defendant in Criminal History Category I at Kumar's offense level. Moreover, that

sentence did not result from the defendant's higher criminal history. It resulted from the defendant's dishonesty in his allocution at sentencing. As the Court explained, "The guideline was set by the Sentencing Commission and is a useful starting point. But I actually – until you spoke was inclined to give you a lower sentence, maybe 72 months." Sent. Hr'g Tr. at 50. That 72-month sentence would have been effectively a guideline sentence two levels below the defendant's offense level. In short, the defendant's criminal history category did not determine his sentence of 87 months. His sentence resulted from his conduct and his choices, not the timing of the government's prosecution.

Second, the defendant could never have qualified for a reduction under USSG § 4C1.1 because he received a leadership enhancement. *See* PSR ¶ 58; USSG 4C1.1(a)(10).

Third, the defendant's claim about concurrent sentences is wholly speculative. There is no evidence that the defendant would have pleaded guilty earlier, even if he had been charged earlier, or that his case would have gone to trial in time for him to have a concurrent sentence. As noted above, the defendant knew that he was under investigation in the District of Massachusetts by September 2020. There is no evidence he asked to resolve his case in Massachusetts. He did not want a plea agreement in either district. All indications are that Kumar intended to fight the drug charges and the false statement charge. Indeed, after he was indicted in May 2021, he waited over a year before pleading guilty, and at his sentencing, he still tried to deny culpability.

Kumar also cannot show that this Court would have ordered his sentence to run concurrently with a sentence in Rhode Island. Under 18 U.S.C. § 3584(a), this Court had the authority to sentence the defendant to a consecutive or a concurrent term. It is pure speculation to suppose otherwise. Certainly, the Court was not bound by USSG § 5G1.3(b), and that provision likely did not apply to the defendant because the conduct underlying his Rhode Island conviction

was not relevant conduct as to his Massachusetts conviction under USSG § 1B1.3(a)(1), (a)(2), or (a)(3). The wire fraud scheme was not perpetrated during the commission of the defendant's drug crimes, in preparation for them, or to evade detection of them. The First Circuit has cautioned that "during the commission" in USSG 1B1.3(a)(1) should be read narrowly, or it will swallow the broader definition in USSG 1B1.3(a)(2) for acts as part of a common scheme. *United States v. Castillo*, 981 F.3d 94, 106 (1st Cir. 2020). The conduct underlying Kumar's fraud scheme was not part of the same course of conduct or common plan as his drug crimes. The victims of the wire fraud and identity theft were not victims of the drug scheme—they were customers, and the wire fraud scheme's co-conspirators, purpose, *modus operandi*, and intended harm were all different from the defendant's drug scheme. *See* USSG 1B1.3, Application Note 5(B)(i). Simply put, the wire fraud scheme and the aggravated identity theft were not relevant conduct for Kumar's crimes of conviction in Massachusetts, and USSG § 5G1.3(b) therefore had no application in the case.

In sum, the defendant cannot show that pre-indictment delay resulted from any improper motive or that any certain prejudice resulted. Accordingly, even if the defendant had not waived his claim of pre-indictment delay by knowingly and intelligently withdrawing his motion before pleading guilty unconditionally, appellate counsel would been objectively reasonable in refusing to include the claim in the defendant's appeal. And no prejudice could have resulted because, for the reasons given above, Kumar's claim would have failed in any case.

WAIVER OF ATTORNEY CLIENT PRIVILEGE

Objectively, it appears that Kumar's counsel performed in a reasonable manner, and the defendant has not credibly alleged any undue prejudice. However, to the extent the Court finds any live issues, the government will need to speak with and to obtain evidence from Kumar's former counsel. Kumar's claims of ineffective assistance implicitly waive the attorney-client and

work product privileges as to any live issues, but he has not provided an affidavit regarding his counsels' advice to him or his interactions with them on the issues he has raised. The government respectfully requests that the Court find a limited waiver of the attorney-client privilege as to any live issues the defendant has put in question.

CONCLUSION

For the reasons stated above, the Court should deny the defendant's motion because his allegations are merely conclusory, are contradicted by the record, and are inherently incredible and legally flawed.

Respectfully submitted,

JOSHUA S. LEVY
Acting United States Attorney

By: /s/Kriss Basil
KRISS BASIL
Assistant United States Attorney

CERTIFICATE OF SERVICE

I hereby certify that this document filed through the ECF system will be sent electronically to the registered participants as identified on the Notice of Electronic Filing (NEF) and paper copies will be sent to those indicated as non-registered participants, including the defendant at FCI, Fort Dix, New Jersey.

/s/Kriss Basil
KRISS BASIL
Assistant United States Attorney

U.S. Department of Justice

United States Attorney
District of Rhode Island

50 Kennedy Plaza, 8th Floor
Providence, Rhode Island 02903

(401) 709-5000
FAX (401) 709-5001

August 27, 2019

Via Hand Delivery

Joanne Daly, Esquire
Federal Public Defender Office

Re: *United States v. Manish Kumar*, Crim. No. 19-mj-0069.

Dear Ms. Daly:

Per our earlier discussion, this letter confirms that your client, Manish Kumar, agrees to meet with representatives of the United States to make a proffer. The full and complete terms of this proffer session are set forth in paragraphs 1 through 4 below:

1. No proffered statement or other information provided by your client will be used against him directly in the case-in-chief of any criminal case, provided that his statements and information are completely truthful and candid. If they are not, the proffered statements and information may be used against him directly in the case-in-chief of a prosecution for perjury, making false statements, obstruction of justice, or any other criminal case, including any case involving the criminal offenses and conduct that are the subject of the Government's investigation and your client's proffer.

2. In the event your client is a witness and testifies differently from any statement or information provided in the proffer, the Government may use his statements and information without limitation to confront, impeach, and cross-examine him.

3. The Government may make derivative use of the statements and information provided by your client. This means that the Government may pursue any investigative leads suggested by your client's statement and information and is free to use any evidence or information which it obtains in such a manner without restriction. It also means that your client will not be able to claim at a trial or other proceeding that such evidence and information is tainted by your client's proffer.

4. These numbered paragraphs constitute the entire agreement between the Government and your client. The Government does not and has not

offered any terms other than the terms set forth in these numbered paragraphs, and neither you nor your client have been offered or expect any terms other than the terms set forth in these numbered paragraphs. By countersigning this letter below, your client expressly agrees to the terms and conditions set forth in these numbered paragraphs.

Sincerely,

AARON L. WEISMAN
United States Attorney

MILIND M. SHAH
Assistant U.S. Attorney

I have read this letter, discussed it with my counsel, understand the terms and conditions contained in the letter, and agree to them.

_____ Date: _____
Manish Kumar

UNITED STATES DISTRICT COURT
DISTRICT OF MASSACHUSETTS

UNITED STATES OF AMERICA v. MANISH KUMAR, Defendant	No. 21-cr-10157-MLW

AFFIDAVIT

I, Kriss Basil, state as follows:

1. I am an Assistant U.S. Attorney in the District of Massachusetts, assigned to the Securities, Financial & Cyber Fraud Unit.

2. In 2019, I opened a money laundering and fraud investigation, with a cooperating witness, Manish Kumar, who had been charged in Rhode Island. Prosecutors from Rhode Island were not involved in the Massachusetts investigation.

3. In February 2020, I met with Kumar; Kensley Barrett, his attorney; and federal investigators in Boston to vet Kumar as a cooperating witness and to probe the scope of his possible cooperation, including as to drug crimes. At the meeting, Kumar made false statements. After the meeting, Kumar stopped cooperating, and federal agents began investigating Kumar as a target.

4. In the summer of 2020, I communicated with Mr. Barrett regarding meeting with Kumar to resolve his case with the District of Massachusetts. Kumar refused. I am aware that Mr. Barrett recommended that Kumar meet with the government.

5. The Massachusetts-based investigation was significantly hampered by the COVID 19 pandemic. Nevertheless, the government actively sought to obtain and did obtain documentary evidence and witness statements throughout 2020 and into spring 2021.

6. I was aware that Kumar pleaded guilty in Rhode Island, was sentenced, and thereafter sent a letter to the Rhode Island U.S. District Judge to correct what I understand to be a clerical error in his sentence.

7. No one from the U.S. Attorney's Office in Rhode Island asked me to take any action with respect to Kumar, either before or after his sentencing, directly or indirectly. The U.S. Attorney's Office in Rhode Island did not direct or control the Massachusetts-based investigation of Kumar or his multiple co-conspirators.

8. On May 12, 2021, I learned that Kumar had been released from BOP custody. Although I had intended to charge him with a co-conspirator later in the year, I sought and obtained a criminal complaint in May to arrest him before he was removed from the United States by ICE.

I declare under penalty of perjury under the laws of the United States of America that the foregoing is true and correct.

KRISS BASIL

Digitally signed by KRISS BASIL
Date: 2024.11.13 17:18:50 -05'00'

KRISS BASIL
Assistant U.S. Attorney

EXHIBIT D

ECF 75 — Supplemental Memorandum in Support of Motion to Dismiss (May 12, 2022)

UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF MASSACHUSETTS

UNITED STATES OF AMERICA	)	
	)	
v.	)	CRIMINAL NO. 21-cr-10157-MLW
	)	
MANISH KUMAR,	)	
Defendant	)	

Supplemental Memorandum in Support of Motion to Dismiss

Now comes the defendant and hereby supplements the previously filed pro se Motion to Dismiss (Doc. No. 58).

RELEVANT PROCEDURAL HISTORY

On February 28, 2022, Manish Kumar, the Defendant, filed a pro se motion to dismiss the indictment, arguing the following points: a double jeopardy violation, vindictive prosecution, and unconstitutional delay. At the time, undersigned counsel represented Mr. Kumar on a standby basis.

On March 15, 2022, undersigned counsel was appointed to represent Mr. Kumar in the case-in-chief.

On April 26, 2022, counsel was ordered to inform the Court on two matters: 1) whether the defendant would continue with his pro se; and 2) whether counsel would supplement the motion. (Doc. No. 74).

On May 6, 2022, counsel filed a status report answering both questions in the affirmative.

FACTUAL BACKGROUND[1]

On August 25, 2019, Manish Kumar was arrested by federal agents at JFK International Airport. The arrest warrant stemmed from an investigation into fraudulent call-center activity being prosecuted out of the United States District

[1] The facts in this section are based on discovery produced by the government in this case, and on a review of filings from Mr. Kumar's case in the District of Rhode Island: United States v. Kumar, 20-cr-00089-JJM-PAS.

Court, District of Rhode Island. Investigators believed Mr. Kumar was part of an internet and call-center fraud scheme, and that he misused credit card information obtained from Americans to whom his company sold pharmaceuticals. During the first interaction with the agents, Mr. Kumar made inculpatory statements and granted the investigators permission to access his mobile devices and laptop computer. In the months that followed, Mr. Kumar met with agents at least ten times. At many of these meetings, including the first one, the interview included his discussion of the pharmaceutical business that he operated in India, selling prescription medication including Viagra and Cialis to American customers.

On October 21, 2020, the government filed an Information in the United States District Court, District of Rhode Island, alleging unlawful conduct between March 2018 and August 2019. On November 5, 2020, Mr. Kumar pleaded guilty to the charges in the Information. He was sentenced on February 11, 2021. At sentencing, a substantial focus was placed on his role as a person selling pharmaceuticals, and the attendant sentencing enhancements that that position would warrant.

On May 17, 2021, an indictment issued against Mr. Kumar in this case (Doc. No. 8). It alleges that Mr. Kumar conspired to unlawfully ship misbranded prescription drugs, including controlled substances, into the United States and to unlawfully distribute prescription narcotics between March 2015 and August 2019. It also charges Mr. Kumar with making false statements to law enforcement—denying his involvement in illegal pharmaceutical sales during the meetings with agents. The primary evidence in support of the charges comes from the statements Mr. Kumar made to law enforcement during the investigation, and the data from his personal electronics which he gave to law enforcement.

ARGUMENT

The Fifth Amendment to the United States Constitution demands that "[n]o person shall…be deprived of life, liberty, or property, without due process of law." Due process requires that criminal proceedings comport with principles of "fundamental fairness" and "the universal sense of justice." Betts v. Brady, 316 U.S.

455, (1941), overruled on other grounds by Gideon v. Wainwright, 372 U.S. 335 (1963); see, also, United States v. Djokich, 693 F.3d 37, (1st Cir. 2012). The manner in which Mr. Kumar has been prosecuted runs afoul of these constitutional protections.

Pursuant to Rule 8 of the Federal Rules of Criminal Procedure, offenses may be joined in a single prosecution if they are "of the same or similar character, or are based on the same act or transaction, or are connected with or constitute parts of a common scheme or plan." The offenses charged here would have been eligible for joinder with the Rhode Island offenses. The Rhode Island prosecution involved Mr. Kumar's use of customer credit card information which he obtained through the pharmaceutical transactions. The investigation was conducted by the same law enforcement agents. The evidence, much of which was data from Mr. Kumar's electronic devices, overlaps substantially.

In federal court such joinder is permissive. Though controlling precedent regarding the Double Jeopardy clause applies narrowly to a successive prosecution argument, this prosecution raises concerns of a type that have prompted many state courts to implement mandatory joinder rules and broader Double Jeopardy applications. Compare Blockburger v. United States, 284 U.S. 299, 304 (1932) with Me. Stat. tit. 17-A. §14 ("defendant shall not be subject to separate trials for multiple offenses based on the same conduct or arising from the same criminal episode, if such offense were known to the appropriate prosecuting officer at the time of the commencement of the first trial and were within the jurisdiction of the same court and within the same venue…"); N.Y. Crim. Proc. Law. §40.40 ("[w]here two or more offenses are joinable in a single accusatory instrument . . . such person may not . . . be separately prosecuted"). It appears on this record that the government was aware of the conduct now charged at the time it proceeded against Mr. Kumar in Rhode Island, that the evidence substantially overlapped, and that the charged conduct was interrelated; its decision to try the matters separately has essentially given them two bites at the apple, extended and complicated Mr. Kumar's efforts to defend himself, and exposed him to greater punishment.

In considering the prosecutorial decision-making in this case, particularly the decision to separately and successively try these cases against Mr. Kumar, it is noteworthy that the Rhode Island prosecution did join charges regarding the fraudulent use of pharmaceutical customer credit card information with minimally related charges pertaining to a technical support pop-up fraud scheme. The connection between those activities appears to be only the use of a call center, but the call center connection is a common thread with the conduct alleged in the above captioned matter as well.

These arguments are not merely academic; Mr. Kumar has been prejudiced by the government's decision to proceed against him in two separate prosecutions. He has borne the cost, both financial and temporal, of defending himself against charges in two venues and tried in sequence. The successive nature of these prosecutions enhances Mr. Kumar's sentencing exposure. Under the sentencing guidelines his criminal history is increased by the conviction from the District of Rhode Island. Furthermore, it is likely that these charges and those in the Rhode Island case would have either grouped or negated each other if they had been charged jointly, resulting in a significantly lower potential sentence overall. See, generally, U.S.S.G., §§3D1.1-1.5.

CONCLUSION

For all of the reasons stated above, the case against Mr. Kumar should be dismissed.

Respectfully submitted,
Manish Kumar,
By his attorney,

Date: May 12, 2022

/s/ Henry Fasoldt
Henry Fasoldt, BBO # 667422
185 Devonshire Street, Ste. 302
Boston, MA 02110
henry@bostondefenselaw.com
617-338-0009 – office
617-784-3312 – cell

CERTIFICATE OF SERVICE

I hereby certify that this document, filed through the ECF system, will be sent electronically to the registered participants as identified on the Notice of Electronic Filing (NEF) on May 12, 2022.

/s/ Henry Fasoldt

EXHIBIT E

Orders of this Court entered May 8, 2026 and July 1, 2026, No. 26-1250

United States Court of Appeals
For the First Circuit

No. 26-1250

MANISH KUMAR,

Petitioner - Appellant,

v.

UNITED STATES,

Respondent - Appellee.

ORDER OF COURT

Entered: May 8, 2026
Pursuant to 1st Cir. R. 27.0(d)

This court has docketed this appeal from the denial of appellant's motion to vacate sentence pursuant to 28 U.S.C. § 2255 in Civ. No. 1:24-cv-12710-MLW (D. Mass.). On August 28, 2025, the district court granted appellant's request for a certificate of appealability. Pursuant to 28 U.S.C. § 2253(c)(3), a certificate of appealability must indicate which issue or issues satisfy the standard set forth in 28 U.S.C. § 2253(c)(2).

The district court is requested to identify which issue or issues satisfy the standard set forth in 28 U.S.C. § 2253(c)(2) and to forward its decision to this court.

By the Court:

Anastasia Dubrovsky, Clerk

cc:
Hon. Angel Kelley
Robert Farrell, Clerk, United States District Court for the District of Massachusetts
Manish Kumar
Donald Campbell Lockhart
Kriss Basil

United States Court of Appeals
For the First Circuit

No. 26-1250

MANISH KUMAR,

Petitioner - Appellant,

v.

UNITED STATES,

Respondent - Appellee.

ORDER OF COURT

Entered: July 1, 2026
Pursuant to 1st Cir. R. 27.0(d)

This court has docketed this appeal from the denial of a final order entered in a proceeding brought pursuant to 28 U.S.C. § 2255. The case cannot go forward unless a certificate of appealability issues. 28 U.S.C. § 2253. The district court issued a certificate of appealability as to the following issues: (1) Defendant's claim regarding ineffective assistance of counsel due to failure to obtain proffer protection; and (2) Defendant's claim regarding preindictment delay in violation of the Fifth Amendment.

If Appellant wants appellate review of any issue as to which the district court did not issue a certificate of appealability, Appellant must apply to the court of appeals for an expanded certificate of appealability by **July 31, 2026**. 1st Cir. R. 22.0(c)(2). Appellant's memorandum requesting an expanded certificate of appealability must be explicit as to the additional issues that Appellant wishes this court to consider, giving specific and substantial reasons, and not mere generalizations, why an expanded certificate of appealability should issue, and should be accompanied by a copy of the district court order. 1st Cir. R. 22.0(c)(2).

After **July 31, 2026**, if Appellant fails to apply for an expanded certificate of appealability, then the appeal will proceed only with respect to the issue or issues as to which the district court issued a certificate of appealability.

By the Court:

Anastasia Dubrovsky, Clerk

cc:
Manish Kumar, Donald Campbell Lockhart, Kriss Basil

EXHIBIT F

ECF 80 — Motion to Withdraw Motions to Dismiss (September 2, 2022)

UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF MASSACHUSETTS

UNITED STATES OF AMERICA,	)	
	)	
v.	)	CRIMINAL NO. 21-cr-10157-MLW
	)	
MANISH KUMAR,	)	
Defendant.	)	
	)	

DEFENDANT'S MOTION TO WITHDRAW – MOTION TO DISMISS (Docs. No. 58 and 75)

Now comes Manish Kumar who moves to withdraw the "Motion for Dismiss Indictment," filed on February 28, 2022 (Doc. No. 58), and the "Supplemental Motion to Dismiss" filed on May 12, 2022 (Doc. No. 75). He withdraws these motions in light of his request for a Rule 11 Hearing (Doc. No. 78).

Respectfully submitted,
MANISH KUMAR,
By his attorney,

Date: September 2, 2022

/s/ Henry Fasoldt
C. Henry Fasoldt (BBO# 667422)
185 Devonshire Street
Suite 302
Boston, MA 02110
henry@bostondefenselaw.com

CERTIFICATE OF SERVICE

I hereby certify that this document filed through the ECF system will be sent to the registered participants as identified on the Notice of Electronic Filing (NEF) on September 2, 2022.

/s/ *Henry Fasoldt*
Henry Fasoldt